

Meeting Point. Club Sei. Sun Park.

Public reading edition

English · Complete substantive translation

Gil Marer alleges commercialization of Sun Park from 2018 and deliberate concealment of its arrangements and contingencies. He attributes that activity to the Acosta Matos perimeter and the identified private individuals, with the alleged participation of people linked to former Meeting Point leadership. He says they concealed it from the Meeting Point corporate organs that should have known and from the 36/2012 insolvency. He says nondisclosure harmed the LPB 36/2012 insolvency and carried into the later Meeting Point 357/2024 and 93/2025 restructuring proceedings, affecting parties in Spain and Germany.

The 2018 testimony describes acts already carried out; later retail offers show actual exposure to consumers. Each person's mandate, the contracting entity and completed bookings, payments or receipts remain to be established. The concealment allegation is not presented as a conviction.

36/2012 | 357/2024 | 93/2025

An attributed allegation. Identified sources. Requests awaiting a decision.

Visual reading guide

The central allegation rests on a documentary sequence. Each item answers a different question: a later screen cannot be projected back to 2018, and a corporate connection cannot replace a mandate.

2018	Presentations and visits Barreiro’s sworn testimony describes commercial and access activities already performed.
2019	Lava Verde / Club Sei Corporate project, hotel brand and announced distribution.
2020	Consumer offer Listings, prices and booking screens; completed collection of money remains unproved.
2024-26	Notices and continuity Spanish proceedings, German insolvencies and subsequent document custody.

The alleged harm runs in both directions.

Gil says fragmented information can prevent each estate and affected party from identifying rights, liabilities and recovery opportunities. The arrows represent requested document exchange and the alleged mechanism, not completed transmission or established shared responsibility.

ES Spain · ownership, operation and restructuring	⇄ Documents and response	DE Germany · contracts, records and recovery
LPB 36/2012: the request is to reconstruct authority over the units, access, operation, inventory, income and recovery claims. Meeting Point 357/2024 > 93/2025: the request is to establish what the debtors, their representatives and the expert knew, and what reached the negotiation and plan documents.	⇄	FTI and the German Meeting Point companies: contracts, compliance records, bookings, payments, claims and contingencies may matter to their respective estates and creditors. German records may clarify the mandate and flows disputed in Spain; Spanish rights and litigation may affect valuation and recovery in Germany.

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DOCUMENTARY SUBMISSION, REQUEST FOR INCLUSION IN THE RECORD AND REFERRAL TO THE COURT

Public reading translation · 23 September 2026 · English

This public edition translates Gil Marer's proposed Spanish submission. It is not a signed pleading, proof of filing, a certified translation or evidence that any recipient has received it. Its requests describe the action Gil seeks from the competent authority; they do not establish standing, a procedural entitlement or the present status of a case. Private contact details and unnecessary addresses are omitted. Private correspondence is described by attributed summaries; its substance, contrary responses and evidential limits are preserved.

The underlying two court PDFs remain separate, retained private source documents:

MeetingPoint_01_Escrito_357-2024_93-2025.pdf and

MeetingPoint_02_Anexos_357-2024_93-2025.pdf. Annex numbers and original page or folio references below refer to that private bundle, not to the pagination of this public reading edition or to a public download of the original evidence. Publication does not make restricted exhibits public or imply formal service.

Intended recipient: the Judicial Administration Lawyer of the Commercial Section of the **Tribunal de Instancia of Las Palmas de Gran Canaria**, seat no. 3, formerly Commercial Court no. 3.

Proceeding: notice of the opening of negotiations **357/2024**, jointly concerning **MEETING POINT HOTELMANAGEMENT (CANARIES), S.L.U.**, **MEETING POINT SPAIN, S.L.U.** and **MEETING POINT INVESTMENT, S.L.U.**

Identification in the recovered judicial documents: NIG **3501647120240001256** · IUP **LM2024012294** · Section B. The debtor companies' tax identification numbers, respectively, are **B76152040**, **B76097682** and **B76224096**.

Documentarily linked proceeding: judicial approval of the restructuring plan, **93/2025**, Section P, IUP **LM2025010787**, with the same NIG. The notice dated **27 June 2025** expressly identifies **357/2024** as the originating proceeding. Gil requests identification of the file or subsidiary record in which this communication should be included, keeping the two numbers distinct.

Central issue: commercialization from 2018 and alleged concealment. Gil Marer alleges that the Acosta Matos perimeter and the identified private individuals, with the participation he attributes to people connected with Meeting Point's leadership, **were commercializing Sun Park from 2018 while concealing the reality and extent of those operations from the organs of the Meeting Point companies that needed to know about them and from insolvency proceeding 36/2012**. He also alleges that the failure to make full disclosure carried forward into Meeting Point's subsequent restructuring proceedings, **357/2024 and 93/2025**, impairing the assessment of rights, income, liabilities, contingencies and recovery actions in Spain and Germany. He asks that the operations actually carried out be compared with the information actually received and included in each relevant record.

GIL MARER proposes to appear **solely in his own name, principally as an informant or whistleblower** communicating facts learned in a business context. He is a director of **AWESWELL LIMITED**, United Kingdom company no. **07716847**, as recorded in the [official UK company register](#). That capacity explains his knowledge and claimed interests; **he does not appear here on behalf of that company**. According to the corporate structure he describes, AWESWELL holds all the share capital of **Luchy Playa Blanca, S.L.U. (LPB)** and **Matkator, S.L.U.**, which are separate legal persons; certificates may be produced to establish this. **LPB is subject to insolvency proceeding 36/2012 before the seat formerly known as Commercial Court no. 1; Matkator is not in insolvency proceedings**. He

alleges personal loss and effects on group interests both within and outside that insolvency. He **neither has nor claims authority to represent LPB**, and does not appear for Matkator. Ownership of shares does not transfer each company's representation or ownership of all its assets. None of these circumstances establishes a claim against the three Meeting Point debtors or party status in 357/2024.

Composition of the underlying submission: Document 1 comprises the Spanish submission, supplementary index and annexes 23-32; Document 2 comprises the index and historical annexes 1-22, including judicial documents and visual evidence. The intended court submission is both files together. They form one documentary package, with separate pagination in each PDF and common references by annex number. References to a source's pages or folios follow its original numbering; the indices identify their location within each PDF. Historical notices are included as evidence of what was communicated at the time; the qualifications in the current submission govern their present scope.

STATEMENT OF THE MATTER

First. Purpose and precise procedural route

This submission identifies information and documents concerning the Sun Park complex at **calle Janubio 3, Playa Blanca, Yaiza**, the presentation known as "Lava Verde" and the "Club Sei Lanzarote" project publicized by Meeting Point/FTI. Gil requests **inclusion of the complete submission and the annexes actually supplied in originating file 357/2024, and inclusion or documentary association with the linked plan-approval proceeding 93/2025, as appropriate to the status of each, with referral to the competent judicial decision-maker and a record of the decision and any circulation ordered**. He asks the court office to identify where the original is held and where its reference or copy appears, maintaining one documentary index. Separately, he requests information about the proceedings' status and limited access to the identified acts. If a request has no available procedural route, he asks for a separate, reasoned decision and an opportunity to remedy any legally remediable defect. The alleged facts may support civil, insolvency, other non-insolvency and, if the relevant elements are met, criminal routes, but **each claim requires its own competent body, representation and procedure**. This notification concerns the possible reflection of rights and risks in the three debtors' documents, without abandoning other available routes.

Principal request in these proceedings. Gil seeks a decision on including the communication in the record and, through the appropriate route, on the requests for reports, circulation and referral to the Public Prosecutor set out in the relief sought. His independent request for information and access is not a prerequisite to those decisions. He asks that any copy referred to the General Council of the Judiciary (CGPJ), a judicial governing body or another authority be identified as such, together with a decision on the requests addressed to this court. The account and its documentary index are intended to remain together; separate decisions on each request reflect their different legal bases and make the treatment of each ascertainable.

The substantive issue placed before this body is alleged concealment of commercialization already carried out. Gil maintains that the private actors and the persons linked to Meeting Point's leadership individually identified in the submission advanced the commercial exploitation of Sun Park from 2018 outside the required corporate and judicial oversight. The alleged clandestine conduct concerns concealment of the legal basis for the availability offered, the agreements, their actual participants, consideration and risks. The presentations to third parties described in sworn judicial testimony and the subsequent retail distribution form part of that sequence, preserving the date and scope of each item of evidence.

One factual core, two affected settings. In **36/2012**, the allegation concerns control and value of the productive unit, its operation, opportunities for improved offers and recovery, and the rights of owners and creditors. In **Meeting Point's 2024-2025 restructuring**, it concerns which contracts, income,

obligations, litigation, warnings and possible recovery actions should have appeared in the corporate, financial and judicial information, and what was actually provided to AUREN and the court. The sequence extends to the Spanish and German estates and creditors identified in each relationship.

The proposed verification must follow both information and money. The recovered 2024 notices and the responses of compliance personnel and insolvency administrators establish the knowledge and actions that each document actually describes. Gil asks that these be used to identify who knew each item, who had the duty and capacity to transmit it, what each communicated or omitted, and how that was reflected in the versions of the plan and its annexes. The allegation of deliberate concealment is therefore tied to verifiable documents, people, companies, dates and decisions, alongside contrary evidence and matters still unresolved.

Specific connection with this court's function. The communication places three linked documentary questions before the custodian of **357/2024 and 93/2025: which Meeting Point entity contracted for, planned or commercialized rights concerning Sun Park/Lava Verde/Club Sei; how those rights, their income, costs, claims and contingencies were described in the restructuring and financial documentation; and who now holds the documents and received warnings following the sale and merger.** Their alleged relevance to LPB, Matkator, the productive unit and public funding must be established through those relationships, rather than through a bare list of actors or proceedings. The alleged irregularities are raised as possible criminal and non-insolvency conduct as well as for their financial effects. Gil asks the commercial court to act within its documentary jurisdiction and assess any legally appropriate referral to the Public Prosecutor.

This is not a new notice of the opening of negotiations under Article 585 of the consolidated Insolvency Act (**TRLC**): that power belongs to the debtors. Nor does this submission seek recognition of a debt, annulment of acts in other proceedings, judicial recusal or the opening of a criminal investigation. Possible confidentiality of parts of the file, requirements for procedural representation and the absence of recognized creditor status are expressly left to the appropriate decision.

The proposed appearance is **predominantly as an informant**, also stating the claimed financial interest. Articles 1-3, 16, 35 and 36 of **Law 2/2023** are invoked only to the extent that its substantive scope, the context in which the information was obtained and the lawful reporting route apply, taking account of the exclusions in Article 35.2. The use of "whistleblower" does not establish protected status for all the information. Neither the claimed informant capacity nor presentation to a court alone creates party status or replaces procedural requirements. **Directive (EU) 2019/1937**, Germany's **Hinweisgeberschutzgesetz** and UK protected-disclosure law may be relevant to communications and relationships within their respective personal, material and territorial scopes; they do not themselves expand standing in this Spanish proceeding. Gil requests proportionate handling of personal data and a traceable record of any decision on the submission.

Identification and documentary unity. The two-document package identifies both proceedings. If it is registered separately in each so that it can be located, the second entry is intended as a copy for the record and a link to the first, not a duplicate independent claim or a request to consolidate the proceedings. Gil asks the court office to cross-reference the entries and determine the proper procedural destination.

Second. Documents concerning control, access and representation at Sun Park

1. **Carlos Saavedra Rodríguez del Palacio and Miguel Hernández Lorenzo (PwC) are materially relevant contemporaneous professional witnesses and document custodians concerning the alleged debt and authority mechanism, its effects on voting and its use in insolvency filings.**

Their relevance rests on professional work, comparison of accounts and Jonathan Simó's report, and their own contributions to the meeting of **10 June 2016**. The controlled transcript attributes to Miguel, at **00:40:39.920**, a description of a fictitious and serious debt, and to Carlos, at **00:51:08.550**, the statement that assessments he regarded as unreal had been included in insolvency filings, subject to the specific amounts under discussion. These statements must be read with the context concerning allocation of expenses between the owners' community and the operating company. They are professional statements about facts relevant to criminal allegations, not a judicial finding of an offence. The filenames bearing "11JUN2016" are corrected historical labels; the two located AMR recordings total approximately **126 minutes and 36.4 seconds** according to the measurement record, rather than the 144 minutes in a derivative label. Gil's confirmation that Cristo delivered the recordings directly is documented; technical voice and transcript comparison is a separate task. Editorial comments in brackets are not statements by those present. Version 3 of the report has been recovered; comparison with version 4 remains outstanding. Correspondence of **12 September 2016** delimits one particular conversation with the insolvency administration; it does not reduce the whole of PwC's prior knowledge or testimonial relevance to that conversation.

2. A copy of the **Sun Park Owners' Community minutes of 18 May 2018** identifies **Antonio Cogolludo Rojas** as president, **Francisco Matos Matas** as secretary/administrator, **Shaila Cogolludo Ramos** as treasurer and **Laura Acosta Matos** as representative of **Construcciones Acosta Matos, S.A.** It lists **Luchy Playa Blanca, S.L.U. (LPB)**, represented by its liquidator **Francisco de Borja Rodríguez-Batlloir Laffitte**, and other attendees. According to the document, only Amenen/Shaila among those attending had a vote; the validity of the assessments and exclusion of the others requires the meeting notice, minute book, debt schedules, receipts and contrary decisions.

3. Item 11 of those minutes expressly states that **LPB, through its representative, requested consideration of security services** to prevent unauthorized access and damage. The resolution gives Antonio authority to engage a service up to €8,500 per month. This protective explanation is present in the source; it does not, by itself, establish either that later access was lawful or that the liquidator ordered an unlawful occupation. The resolution, actual engagement, instructions, payments and actual use of the service must remain distinct.

4. The sworn judicial statement of **Miguel Ángel Barreiro Cano, dated 25 June 2018, Preliminary Proceedings 1132/2018 before Investigating Court no. 2 of Arrecife**, describes February/March visits by people he calls "Daniel" and "Joan", including measurements of facilities and visits to common areas. He stated that he did not know Joan's professional role and that one visit caused no damage. Concerning **7 June 2018**, he describes a separate incident involving locks, chains and control of access; in the terms of his statement, he attributes orders to Laura and mentions president Antonio and Civil Guard officers. The statement establishes what the witness told the court; it does not by itself establish judicially determined authorship, an operator contract, ownership of all properties or the identity of every person in the photographs. Gil requests comparison of its original photographic folios with the available copies.

5. A copy of minutes dated **4 February 2022** presents **José Acosta Matos**, for Proyectos Acosta Matos, S.L., explaining a building project, and Laura for Construcciones Acosta Matos, S.A. The first name must be checked against the full identification "José Daniel" used elsewhere. None of these capacities is automatically backdated to conduct in 2018.

Second bis. Individual attribution of the alleged mechanism

Gil Marer, in his capacity as whistleblower, attributes to Francisco Mario Matos Matos, Antonio Cogolludo Rojas, Shaila María Cogolludo Ramos, José Daniel Acosta Matos and Laura Patricia Acosta Matos coordinated and continuing conduct that allegedly used community roles, debt, voting exclusion, information control, security and access to acquire or consolidate physical control over the Sun Park hotel platform, interfere with its continuity and recovery alternatives, and subsequently create an appearance of proprietary and commercial availability. Separately, he attributes acts and omissions enabling, tolerating or ratifying that outcome to the insolvency administrator, and decisions and omissions to the judge that, he alleges, preserved it despite specific warnings. This is Gil's express accusation. Its verification requires identification of each person's acts, documents, knowledge, capacity to act and effects; it is not a conviction or a declaration of established collective liability.

Francisco Mario Matos Matos

Gil attributes to **Francisco Mario Matos Matos a central and directing role in the alleged community and documentary mechanism**, alongside the distinct conduct of Antonio Cogolludo Rojas and Shaila María Cogolludo Ramos and their alleged connection with José Daniel and Laura Patricia Acosta Matos. He is not portrayed as a peripheral participant. Specifically, Gil attributes to him continuity in administration and documentation: involvement in the community's communications, accounts, debt, voting and access arrangements; participation in the 2016 professional discussion about the economic basis of assessments; and a later connection with the Acosta Matos perimeter. Verification focuses on what information he personally produced, held, certified or transmitted, which objections he knew, and how those representations were used before the insolvency administration, the court and commercial counterparties. Gil asks that his documents and mandates be identified, versions of accounts and certificates compared, and transmission of warnings reconstructed. His later corporate association with José Daniel in ORION does not by itself establish an earlier criminal agreement.

José Daniel Acosta Matos

José Daniel Acosta Matos is attributed **commercial acts already carried out in February/March 2018** and direction of the change in control: showing the hotel to third parties as already acquired, representations of ownership, visits and measurements described in Barreiro's judicial statement (annex 1, pages 2 and 4), together with his later position in Lava Verde. Gil places these within the commercialization under way from 2018 that he alleges, with the supporting material and consequences developed in the Third and Fourth bis sections. Barreiro's statement (annex 1, folio 5) does not place him physically at the 7 June incident; attribution of direction must therefore be tested through instructions, communications, contracts, financing and ratification, not through a presence the source itself excludes. His profession as an architect, or CAM's creditor position and ownership of particular properties, did not automatically confer authority over the entire hotel or assets outside LPB.

Laura Patricia Acosta Matos

Concerning Laura Patricia Acosta Matos, Barreiro's judicial statement about 7 June (annex 1, folios 3, 4 and 6) attributes operational instructions during the access and exclusion incident to her, alongside Antonio Cogolludo. The historical cover contains a discrepancy in her second given name; its literal wording is retained in the source, while the narrative uses the reconciled identity **Laura Patricia Acosta Matos**. The witness attributes orders to "Laura Acosta Matos" and specifies that she did not personally break the locks. A decisive comparison is with the limited authorization to enter premises for maintenance or supervision invoked by the insolvency administrator: which areas it covered, who received the instruction, whether its scope was exceeded and what response followed knowledge of any excess.

Antonio Cogolludo Rojas

Antonio Cogolludo Rojas is attributed participation through the community presidency and implementation of its arrangements, including security and access. The witness concerning 7 June attributes operational instructions to him and refers to identification by the Civil Guard; that point requires the original police report or record of action. Gil seeks the resolutions, security and locksmith contracts, instructions, invoices, payers and key registers needed to distinguish legitimate preservation from possible exclusion beyond his authority. Documented corporate positions help locate responsibilities and records; they do not replace proof of a personal act.

Shaila María Cogolludo Ramos

The attribution to Shaila María Cogolludo Ramos concerns her community documentary and administrative participation, including her appearance with Francisco Mario Matos Matas in a communication dated **8 April 2014**, and the custody, production or circulation of information that must be individually identified. Gil asks that her mandate, the documents she actually prepared or sent, objections received and subsequent use of the data be reconstructed. Her documentary role is not equated with a physical order on 7 June, nor is knowledge of the German file attributed to her merely through relationships with other actors.

Insolvency administrator: authority, information and asset recovery

Gil attributes separate responsibility to the insolvency administrator, **Francisco de Borja Rodríguez-Batlóri Laffitte**, for the sequence of security/access requests and authorizations, reliance on data from the owners' community and CAM, treatment of physical control and the absence of a traceable accounting for assets, contracts, income and recovery actions. He maintains that the administrator's conduct knowingly enabled or preserved a harmful outcome and damaged the **ONA-Clubotel** continuity alternative. Verification must distinguish lawful limited authorization, deficient supervision, knowing tolerance following notice and intentional collusion. Necessary contrary evidence includes his denial of having ordered a general takeover, the preservation explanation, judicial authorizations and the outstanding conditions for the ONA solution: it was a real, documented financing structure, but not a completed closing and disbursement. The insolvency administration's opposition submission dated **14 September 2026** in **RPL 3304/2025**, identified in the source register as **R33** and referenced here but not attached, must be compared proposition by proposition with contemporaneous documents. It is a procedural allegation by the insolvency administration, not a judicial finding that all its assertions are true.

The judge and the connection between proceedings

For acts preceding the judicial reorganization, Gil attributes to **the Honourable Alberto López Villarrubia, Magistrate-Judge of the then Commercial Court no. 1 of Las Palmas de Gran Canaria**, decisions and omissions that, he alleges, maintained the effects of private control despite requests and warnings concerning access, works, preservation and evidence. His allegation of **prevaricación**, the alleged knowing issue of an unjust judicial decision, is tied to the acts and proceedings already identified, without asking the restructuring court to replace the competent criminal body. Each episode requires the request, available evidence, decision, appeal and outcome, including the suspension of **26 June 2018**, refusal to validate of **24 October 2019** and partially favorable rulings as contrary evidence. In **357/2024**, Gil requests verification of the original act attributed to the judge and the allocation or substitution records: a registry announcement alone is insufficient to prove his personal involvement or a ground for abstention.

Support and scope: annexes **1-4 and 15**; **Ref21/22/24** records identified in the Sixth section; and the 2016 professional documents referenced in the Second section. Repetition of an allegation in different submissions is not independent corroboration. Community debt was the subject of express amendments

and submissions in **36/2012**; the allegation concerns its basis, classification, use and verification, not a supposed total absence of debt information from the record. Francisco Mario Matos Matas's formal status as a "co-defendant" is not established in this proceeding: the submission instead identifies the central participation Gil attributes to him.

Second ter. LPB's insolvency estate and productive unit: judicial chronology and external relevance

The underlying bundle includes the six complete orders identified in **annex 15**. Their sequence matters because a commercial presentation of Sun Park as Lava Verde or Club Sei may concern facilities whose legal and functional availability was disputed in **36/2012, NIG 3501647120120000351**. Connection with **357/2024** requires identification of the contract and specific Meeting Point company. It is not assumed that every property in the complex belongs to LPB or that the owners' community owns its premises or swimming pools.

1. **16 April 2018, approval of the plan:** the Honourable Alberto López Villarrubia, Magistrate-Judge of the then Commercial Court no. 1 of Las Palmas de Gran Canaria, approved the proposal to transfer apartments in satisfaction of debt and sell premises and swimming pools for **€400,000**, subject to publicity and the possibility of an improved offer. The order lists the properties. **26 June 2018:** he suspended realization of the listed mortgaged properties while maintaining liquidation of the other assets. This distinction over time must be preserved when assessing what could then be done.

2. **23 July 2019, Las Palmas Provincial Court, Section 4, Order 78/2019, Appeal 1094/2018:** the order describes **159 apartments, 29 premises and 2 swimming pools** as components of the acquisition of a productive unit; it partly allows the appeal regarding the interest amounts to be taken into account for an improved offer. The filename bears "29JUL2019", the notification date, but the order is dated **23 July**. The decision accepts the structure of transfer in satisfaction of debt and joint sale subject to an improved offer; it does not declare all acquisition by CAM unlawful.

3. **24 October 2019:** the same court acknowledges that the partial suspension in June 2018 was mistaken in light of the unitary nature of the disposal. It holds that the separate sale carried out by the insolvency administration contradicts the plan and the Provincial Court's order, sets aside the procedural direction of **12 December 2018**, and **does not validate the deed of 28 November 2018, protocol 2150**, separating facilities and selling them to CAM. Its reasoning connects separation of the facilities with the real possibility of obtaining better offers. Its limit must also be retained: it contemplates setting the transaction aside if an improved third-party offer is authorized and orders renewed publicity; it is not presented as a judgment universally voiding every later act.

4. **24 February 2021:** when deciding AWESWELL's application for reconsideration, the court replaces the reasoning of the direction dated **13 January 2021** but maintains refusal of the requested judicial inspection and damage expert. It records the insolvency administration's denial that it had delivered possession to CAM, and CAM's assertion that it acted in its own apartments or pursuant to community resolutions. The court regarded identification of the apartments shown in photographs as insufficient and reasoned about works, rubble and preservation. This adverse decision is included in full in the underlying bundle; it is not said to find the alleged damage proved. Examination requires locating the photographed properties and comparing the certificates of **15 January 2019** and **9 February 2021**, licences, instructions and the scope of community resolutions.

5. **15 October 2021, order signed at 12:33:35:** the court dismisses the applications for reconsideration of the award order dated **18 May 2021**. It explains that the hearing concerned an improved offer, not a new auction, and emphasizes Ottawa's failure to deposit funds and subsequent conduct. These reasons must be compared with later allegations and decisions, not omitted. A complete reconstruction of the titles issued and used in 2022 and afterwards remains outstanding.

Documented contemporaneous challenge. The procedural direction dated **10 January 2019**, signed by Judicial Administration Lawyer **Águeda Reyes Almeida** on **14 January 2019**, admitted LPB's and **AWESWELL LIMITED's** applications for reconsideration of the **12 December 2018** direction as timely and formally compliant, under registration references **7939 and 8045/18**, and allowed the parties five days to respond. It referred AWESWELL's annulment request to the judge. The complete two-page document is included as **annex 31**. It establishes a contemporaneous challenge and processing of that challenge; admission does not anticipate the merits. This judicial act is distinct from the **4 January 2019** draft and document requests, each having its own purpose and status.

Alleged loss within the insolvency: loss of availability or functionality of particular assets, possible depreciation and reduced competition between bidders, costs and possible restitution or damages claims belonging to LPB. **Outside the insolvency:** rights belonging to other companies or owners, operating or distribution contracts, information offered to investors, and representations about assets, income or contingencies in funding applications. Every loss requires identification of the owner, property or right, date, causal act and quantification evidence. LPB's loss must not be added to that of its shareholder or Matkator without avoiding duplication.

The proposed comparison is specific: **title available at each date > physical or commercial intervention > entity assuming rights or obligations > information reflected in 357/2024 and financing records**. The presentations of the hotel to third parties described in the 2018 judicial statement and Club Sei publicity in 2019-2020 are examined together with the productive-unit dispute. The former are acts carried out according to the witness; the later materials establish their own dates. Gil seeks reconstruction of the contractual and proprietary continuity, income and reflection in each file, without inferring diversion of funds or a false SEPI declaration from chronology alone. **TRLC Articles 192, 200, 202 and 204** assist in delimiting the estate, productive unit, litigation and preservation, subject to the law applicable at the time of each act. Acts in **2018-2019** must be assessed under the Insolvency Act then in force and the decisions governing them.

Third. Commercialization of Sun Park from 2018 and subsequent retail distribution

Gil's central assertion is express: Meeting Point, the Acosta Matos perimeter and the private individuals identified in the submission were already commercializing Sun Park in 2018. He alleges commercial activity being carried out over an existing establishment: showing the hotel to third parties, assertions of acquisition and availability, visits with plans, measurements and acts directed toward its transformation and operation. He places that activity in the sequence leading to the change in physical control on **7 June 2018**, continuing with Lava Verde, Club Sei and tourism distribution. This is the allegation he asks to have verified; its sources and each person's participation are specified below.

Acts actually carried out in February/March 2018. Miguel Ángel Barreiro Cano's judicial statement of 25 June 2018, DP 1132/2018, annex 1, pages 2 and 4, describes José Daniel Acosta Matos and the person called "JOAN" showing the hotel to three third parties as a hotel they said they had acquired. He recounts repeated visits of about forty minutes, measurements of the buffet dining room, bar and entrances using a plan, and checks of facilities for a refurbishment. He identifies José Daniel as the person who telephoned before visits, asserting ownership of the entire complex. These are outward acts described by an eyewitness as having occurred; they support the allegation that a commercial presentation was already being carried out in 2018. An announcement of a future Easter opening formed part of what was said during those acts, but the visits, showings, measurements and representations of availability had already taken place.

They acted upon a hotel that remained in operation, with guests and existing economic relationships. On pages 3 and 4 of the same annex, the witness states that he had been prevented from accessing his maintenance work since 7 June, although the complex continued operating. He describes

closures of reception, the dining room and entrances, and a guest in apartment 605 being required to explain how she would pay for her stay. He attributes instructions to Laura Acosta Matos and acts to president Cogolludo within the limits explained in the Second bis section. The alleged intervention had present effects on access, services, maintenance and guest relations. The payment-related incident does not itself identify the recipient of money or prove who sold that reservation.

Meeting Point and the private individuals: attribution by act and date. The Meeting Point connection is examined alongside March 2018 contacts with the profile of **Juan José Vera Díaz**, his Meeting Point professional address and contemporaneous documentation identifying **Joan Cruz**. Barreiro's statement calls the companion "JOAN" and says that he did not know his role; the specific mandate and company for which he acted must be established. Gil's allegation of joint commercialization is retained unequivocally. José Daniel is attributed the presentations and representations of ownership; Laura and Antonio the instructions and control acts described; and Francisco Mario Matos Matas and Shaila María Cogolludo Ramos the community, documentary and economic functions individually identified in the Second bis section. Group association does not replace proof of participation, and José Daniel is not attributed a presence on 7 June that the statement excludes.

The commercial evidence from 2019-2020 is included as a later phase; those captures are not treated as the start of all activity. The 2018 presentation of Sun Park to third parties and the subsequent retail offer must be examined within one reconstruction of assets, people, decisions and documents. Failure to recover a contract or an individual 2018 receipt does not turn the conduct witnessed that year into conduct merely contemplated. The **2018 distribution, booking, receipt and commission records** remain the subject of a specific production request: a 2019 or 2020 capture is not backdated to fill the gap. Nor does later opening under another brand, or its postponement, itself determine when commercialization of the project and its availability began.

Subsequent retail distribution: the product reached the end consumer with a price, a specific stay and a payment request. The bundle includes a Loveholidays capture visibly dated **21 January 2020**, with a booking URL and session reference retained in private Annex 21a: Club Sei Lanzarote, Playa Blanca; arrival **1 May 2020**, departure **8 May 2020**; seven nights, two adults, family room and all-inclusive board. The screen displays **£1,518.88 as the total due that day**, a standard deposit option of **£706.32**, card fields, supplier and cancellation terms, and a "Book now" button. It is documentary evidence of a retail offer reaching the booking and payment-request screen, beyond an announcement of a future opening. The complete three-page capture forms **annex 21a**. Its historical filename refers to "2 MAYO", but the stay and capture dates are those shown in the document.

The distribution chain has independent relevance even if there was no hotel-management contract. The Loveholidays commercial capture (**annex 21b**), sonnenklar.TV listing at **calle Janubio 3 (annex 5c)** and Meeting Point/FTI materials place the product in public sales channels. The trade publication dated **1 February 2019** identifies Meeting Point Hotels within FTI and **Youtravel** as the route through which British agents could sell Club Sei (**annex 21c**). That source establishes the announced distribution route, not the particular supplier behind booking session retained in Annex 21a. Gil requests the contract and supplier record connecting each retail offer to its wholesaler and room-supplying company. Loveholidays and Youtravel are identified here by their historical trading brands; the contracting legal entity must be established from the terms then in force and the transaction record, without carrying today's corporate structure back to 2020.

The **Acosta Matos website of 31 January 2019** presents "Hotel Lava Verde" at Janubio 3 with **279 rooms**, attributes ownership to **Construcciones Acosta Matos, S.A.** and leaves the "operated by" field blank (**annex 4**). Meeting Point/FTI and sonnenklar.TV materials present Club Sei Lanzarote with **315 units**. Differences between rooms, apartments, registered properties and ownership perimeters require reconciliation; they do not erase the visible commercial offer. Address, plans, photographs, renders, inventory and supplier must be compared.

Alleged receipts and economic destination. Gil maintains that the Acosta Matos perimeter, with the involvement of the individuals identified in the submission and Joan Cruz, brought the hotel into distribution and consumer commercialization, receiving or seeking payments and economic advantages over rights whose availability he disputes. He asks that money be traced from customer and platform through wholesaler, supplier and operator to ultimate beneficiary. The supplied capture shows a payment request and session reference; personal and card fields are blank, and it contains no receipt, bank debit or confirmation of a completed booking. It is therefore not presented as an actual **£1,518.88 payment**. The allegation of receipt and retention of income remains express and is made concrete through requests for accepted bookings, deposits, invoices, commissions, settlements, receiving accounts, cancellations and refunds.

The **27 October 2020** report that the Club Sei concept was postponed because of COVID must be preserved when testing opening and delivery of stays. An operational postponement does not erase earlier commercialization screens, payment requests or obligations that may already have arisen. Conversely, the absence of an individual payment receipt in this copy does not establish that there were no bookings or receipts: it precisely defines the records still needed.

The specific question for **357/2024** is whether **any of the three named debtors** was a counterparty, distributor, custodian or beneficiary of Sun Park/Lava Verde/Club Sei rights, obligations, costs, expected income or contingencies, and whether these appear in debtor annexes, information given to the expert or negotiation documents. Meeting Point Hotels, Meeting Point Hotel Management GmbH, FTI Touristik GmbH, their German insolvency administrators and the three Spanish companies are not treated as one legal person. Recovered captures of a LinkedIn conversation with the **Juan José Vera Díaz** profile show a Meeting Point Spain address and a request for evidence of authority before preparation of a non-disclosure agreement; AWESWELL is proposed in the conversation as the recipient. The captures show days in March and an August 2018 capture clock; they do not replace verification of the native conversation. The same file contains a report that **Joan Cruz left Meeting Point in November 2017**: the entity and mandate under which he acted on each later visit must be verified. His identity or role in 2018 cannot be established by an earlier position alone. These captures, which include unrelated peripheral data, are identified for comparison but were not incorporated into the initial court PDF.

The public dossier retains as an open question the authentication of conflicting oral positions attributed in **January 2025** to people at Acosta Matos and Meeting Point concerning an agreement and possible commercialization as operator. **No recordings or written statements by those people are available here**, so that contradiction is not presented as an authenticated direct admission. The private third-party summary of **19 January 2025** and its circulation among advisers are neither reproduced nor used in this edition as independent corroboration. Through a separate documentary route, **Javier Romera of elEconomista** denied censorship in his message of **17 January** and explained in his message of **20 January** that a judicial document prevented publication of the story. That document, named "AUTO" in the received file, identifies on its first page a **judgment dated 28 September 2023 in LPB 36/2012**. This does not identify who supplied it to the newsroom, and no improper conduct is attributed to Romera. The outstanding issue is identification of the mandates, contracts and entities supporting the commercial activity described, its scope, dates, bookings and income. That contractual analysis must begin with the 2018 acts the witness says he saw. **Public context and attribution limits.**

Third bis. Juan José Vera Díaz: documented links to Meeting Point and companies holding Orion shares

Gil seeks evidence from **Juan José Vera Díaz** concerning the March 2018 contacts about Sun Park and **AWESWELL LIMITED**, his specific involvement and capacity in Meeting Point companies, the requests for proof of authority and a confidentiality agreement, and subsequent contacts, documents and project decisions. His historical leadership connection with **Meeting Point Spain, S.L.** appears in the BORME entries published on **5 January 2017** and **9 March 2020**; the **14 October 2021** BORME publishes his departure as director and secretary, so those documents alone do not establish a current role in 2024. The recovered captures are a contemporaneous graphic source of messages whose integrity and context may be checked against the original records. Gil seeks clarification of his particular relationships and communications with the Acosta Matos perimeter. Separately, the **23 May 2024** BORME establishes powers of attorney in **AGM Canary Asset Management, S.L.** in favor of Enrique Guerra Suárez, José Daniel Acosta Matos and Francisco Mario Matos Matas, among others; this corporate connection does not itself establish Vera's involvement or unlawful concert. AGM is distinct from **MGM Capital Canarias, S.L.**, later named **Global Mergers Acquisitions Canarias, S.L.**

Vera's later business connection is documented through two routes and is relevant to the comparison. The BORME of **15 March 2023** publishes his appointment as attorney-in-fact of **HORWATH HTL CANARIAS, S.L.**, company registry sheet **TF 69564**, registered on **7 March 2023**; its sole director was **Víctor Martí Gilabert**. The same company became **MGM CAPITAL CANARIAS, S.L.**, a name change registered on **22 April 2024**. Orion's **7 November 2024** issuance document identifies MGM as holding **1,000,000 shares, 10% of Orion**. Registry sheet TF 69564 subsequently records a change of sole shareholder to **Global Mergers Acquisitions Capital, S.L.** in **August 2025**, and the name **GLOBAL MERGERS ACQUISITIONS CANARIAS, S.L.** in **November 2025**. The Canary Islands company and its parent remain distinct: Vera's power of attorney in the former does not give him an office in the latter.

The BORME of **11 August 2023** also publishes his appointment as a **director of PAMA E HIJOS, S.A.**, registered on **3 August 2023**. The same issuance document attributes **500,000 shares, 5% of Orion**, to Pama e Hijos. Those two shareholdings belong to the identified companies; Vera is not attributed personal ownership of 15% of Orion. The appointments are established at their registry dates, and Gil requests certification of their continuation, powers and any revocation at each subsequent relevant point.

José Daniel Acosta Matos sits on Orion's board, alongside Francisco Mario Matos Matas, Enrique Guerra Suárez and Víctor Martí Gilabert, among others, according to the BORME of **9 April 2024**. AGM appears as Orion's attorney-in-fact in the BORME of **20 May 2024** and as its exclusive manager in the issuance document. Martí connects both settings through his sole directorship of Horwath HTL Canarias, Orion chairmanship and shareholding and office in AGM. There is therefore a specific corporate connection supporting examination of Vera's mandates, decisions, communications and access to information. He is not attributed a direct office in Orion or AGM that these sources do not establish.

This connection is examined alongside the March 2018 Sun Park contacts, the authority requested then, and later warnings about the asset. Appointments made in 2023 are not backdated to 2018. Gil seeks identification of who knew the source of the offered rights, what information each company exchanged and how contingencies arising from **36/2012** and the Meeting Point project were handled. The personal friendship described by Gil requires separate identification and corroboration; the relevance of these enquiries already rests on documented business connections.

Sources: **BORME-A-2017-4-35**, act **7502**; **BORME-A-2020-47-35**, act **106904**; **BORME-A-2021-198-35**, acts **452222-452223**; **BORME-A-2023-52-38**, acts **130471-130472**; **BORME-A-2023-153-35**, act **364721**; **BORME-A-2024-88-38**, act **216007**; **BORME-A-2025-174-38**, act **405651**; **BORME-A-2025-234-38**, act **545628**; **BORME-A-2024-69-35**, act **168456**; **BORME-A-2024-95-35**, act **229074**. Selected corporate registry pages and the issuance document are identified in **annexes 23 and 24**.

Third ter. Orion Rental SOCIMI, S.A., AGM and the Acosta Matos perimeter: interests, contracts and disclosure responsibility

The connection extends beyond matching names. The **7 November 2024** issuance document, 2024 annual accounts and subsequent issuer disclosures identify specific roles, economic interests and documents for comparison:

- **José Daniel Acosta Matos:** Orion director; **18.77% holding in AGM** and chairmanship of that manager according to the 2024 document and corporate governance page. The 2024 accounts detail his **25% in Grupo Patrimonial Acosta Matos, S.L., 25% in Grupo Acosta Matos, S.L.,** and sole ownership of **Proyectos Acosta Matos, S.L.U.** The different group companies are not equated.
- **Francisco Mario Matos Matas:** director of Orion and AGM; holder of **33% of Pamalexsha Servicios Integrales, S.L.,** which holds **18.77% of AGM.** This is an indirect interest, not a direct 18.77% holding by Matos Matas.
- **Shaila María Cogolludo Ramos and Antonio Cogolludo Rojas:** the sources identify holdings of **34% and 33% of Pamalexsha,** respectively. The source uses an abbreviated form of Shaila's name. Together with Matos Matas's 33%, these make up Pamalexsha's stated capital. They establish a later economic connection; historical acts are individually assessed using the evidence in the Second bis section.
- **Enrique Luis Guerra Suárez:** Orion director, **18.73% holding in AGM,** and separate roles in **RIC Private Equity Investment Partners, S.C.R., S.A.** His acts in each entity and actual circulation of information must be examined. Being proposed as a personal source does not exclude examination of his own conduct.
- **Víctor Martí Gilabert:** Orion chairman and holder of **25% of AGM,** where he serves as a director according to the 2024 declarations. His roles in the company where Vera was an attorney-in-fact make identification of assignments, decisions and conflict controls relevant.
- **Laura Patricia Acosta Matos:** the 2024 accounts, PDF page **43,** identify her as holding **25% of Grupo Patrimonial Acosta Matos and 25% of Grupo Acosta Matos.** This economic connection remains separate from the Sun Park instructions attributed to her by Barreiro.

Specific contracts and consideration. The issuance document, pages **21-22,** describes the exclusive strategic direction and asset-management contract with AGM dated **16 February 2024,** for ten years with possible five-year extensions. It declares fees of **2%** for structuring/strategic management, **2%** for project management, **0.70% annually** for administration and **6% of gross rents invoiced** for asset management. These have different bases and must not be added as though they were a single percentage. It also describes the building contract dated **6 August 2024** with **Construcciones Acosta Matos, S.L.,** for **Hinojeros III,** based on justified direct costs and a **15% contractor's profit margin.** These are contractual rights described by the issuer; actual receipts require invoices, settlements and payments.

The audited **2024 accounts,** PDF pages **42-44 (annex 25),** declare invoicing of **€3,645,525.81 by Construcciones Acosta Matos, S.L.U.** for works and **€140,941.47 by Proyectos Acosta Matos, S.L.U.** for services. These concern properties in **Granadilla de Abona,** not Sun Park. Invoicing does not by itself establish a bank payment or a director's personal income. The same notes declare, subject to the detailed exceptions for each director, no matters to report concerning loyalty and conflicts at the date the accounts were prepared. That declaration must also be preserved and checked. Continuity of the relevant people's interests is examined as such, without attributing ownership of the hotel to Orion or an undocumented transfer of its income.

Update of 30 June 2026: this retains the board's responsibility statement, relevant shareholdings and AGM management. It reports **€7,126,468.39 in 2025 construction invoicing by Construcciones**

Acosta Matos, S.L.U., and drawdowns under the RICPE participating loan of **€1,316,526 in 2024 and €5,069,317 in 2025**. It states that the directors had received no remuneration for their office. These figures distinguish financing, company invoicing, management fees and personal remuneration. The **Other Relevant Information disclosure (OIR) of 23 July 2026** reports **1,865,672 shares subscribed and paid up for €2,500,000.48**, with execution of the deed, registration and admission to trading to follow. The 2024 percentages are not presented as certification of post-capital-increase holdings. Verifiable references: [Orion investor information](#), updated document pages **14, 23, 25 and 28-30**, and the OIR of final terms.

Responsibility for information communicated to the market. Pages **10-11** of the 2024 document personally identify the directors accepting responsibility for its content and declaring, to their knowledge, the absence of material omissions. They include Acosta Matos, Matos Matas and Guerra. Gil seeks comparison of that declaration with the specific information available to each signatory and to **AGM/Abbaco Markets**. The documents do disclose the connections and transactions described here: the allegation concerns possible substantive inadequacy of disclosure about known material facts, conflicts, conduct, litigation or contingencies, not concealment of every corporate relationship.

Two discrepancies require a documentary answer. The **2024 shareholder table** identifies a **5% holding in the name of Construcciones Acosta Matos, S.A.**, while the **2024 accounts** attribute it to **Grupo Patrimonial Acosta Matos, S.L.** A paragraph also shifts from **José Daniel** to **“José Manuel”**, whereas the accounts correctly identify him. These discrepancies require reconciliation with the shareholder register, corporate history and directors’ declarations, without inventing identities or resolving differences by assumption.

Gil seeks preservation of directors’ questionnaires, versions of the issuance document, minutes, conflict declarations, abstentions, the adviser’s verification files, AGM contracts and related-party transaction records. Production should be limited to matters enabling verification of knowledge, disclosure duties, decisions and material consequences connected with the alleged facts. The issuance document states that **CNMV and Portfolio neither approved nor verified its content**. Registry inscription, an ISIN or trading on a multilateral system is not a determination of the lawfulness of the conduct alleged.

Fourth. Previous notices, the German response and the need for a verifiable source

FTI Group Compliance assigned Gil’s communication reference **2024-94** on **20 June 2024**. Its response of **9 July 2024** stated that it had reviewed what had been sent, involved the governance and compliance officer, shared the report with insolvency administrators and held an initial discussion with a Spanish law firm engaged by an administrator, whose professionals would continue clarification. **Axel W. Bierbach**, administrator in the German insolvency of **FTI Touristik GmbH (1500 IN 1758/24)**, communicated on **10 July 2024** that he had appointed **Georg Abegg**, a Madrid lawyer, to clarify issues concerning the Spanish entities. **Oliver A. Scharl** appears in separate German proceedings concerning other Meeting Point entities; he is not thereby attributed administration of FTI Touristik. No final report or exact scope of each mandate is available here.

FTI Consulting is separate from FTI Touristik. Its officer **Matthew Pachman** replied on **25 November 2024** that he had passed the message to a person described as the Meeting Point administrator in Spain; on **4 December**, he declined to identify the recipient on confidentiality grounds. Receipt and the stated forwarding are documented; the actual recipient, capacity, attachments and subsequent action require verification. This corpus does not establish that the earlier communication contemplated for **357/2024** was filed with the court; no claim is made that the court received it. Its preparation and communications with advisers remain private.

Correspondence after the meeting of **18 July 2024** records requests for ownership and recovery-of-possession documents, repeated in November, and Gil’s disagreement, as he maintains that

he supplied them. He asks that the documents actually sent, recipients and evidence of receipt be compared. This disagreement prevents treating complete delivery of the requested material as established or attributing an unjustified refusal to investigate. FTI Consulting's claimed forwarding in November does not identify **AUREN**, appointed in **February 2025**, as the recipient.

The German criminal reference **566 Js 155187/24** also appears in correspondence from the **Munich I Public Prosecutor's Office dated 14 November 2024**, requesting Gil's postal address (**annex 32**). Its use by the receiving authority is therefore documented. Gil seeks certification of its present subject, allocation and status, without treating an active criminal investigation as established. On **15 September 2026, Michael Geier of Munich Kommissariat 71** replied that he had forwarded the communication of **24 August 2026** and attachments to the Munich I Public Prosecutor's Office. In substance, he stated that the information and account then available did not disclose a comprehensible allegation against a particular institution or person, and therefore the prosecutor was not directing action. **That response describes the communication's insufficiency to initiate action at that time; it does not establish that German authorities investigated the facts, located witnesses, or tested and rejected the hypotheses.** Nor does it expressly attribute the insufficiency to an absence of material from **357/2024**. The private bundle preserves the response with an explanatory translation in **annex 32**; this public edition provides the attributed summary rather than the raw private correspondence.

From Gil's experience, the obstacle is obtaining and connecting **testable statements and primary documents held by different people and entities**. The compliance and professional responses described above establish contacts and forwarding, but do not supply here a verifiable reconstruction of contracts, decisions, instructions, ownership and flows. Gil considers that some potential witnesses or document custodians **have been unable or unwilling to cooperate sufficiently with him**. This is his assessment, not a finding or an explanation given by the German authority; no particular person is accused of an unjustified refusal without the relevant request and response. The proposed Spanish submission therefore aims to **fix the facts, sources, persons, gaps and a traceable procedural response** for a later supplementary German communication. It does not ask the Spanish body to investigate on Germany's behalf, or assume that a Spanish acknowledgment alone remedies the specificity requirement identified by Geier. Any future communication to Munich would need to include the actual proof of submission and response from this body and identify which documents and witnesses remain outstanding.

Fourth bis. Alleged concealment and reciprocal harm between Spain and Germany

The alleged harm operates in two directions. **From 36/2012 toward Meeting Point**, incomplete or inaccurate representations of who could make Sun Park available, its encumbrances, third-party rights, litigation and physical control may have entered contracts, room inventories, asset or contingency valuations and financing or restructuring files. The Club Sei offer at Sun Park's address and the booking screen requesting payment establish a documentary link requiring clarification of the contracting legal entity and the scope of the rights offered; they do not themselves establish actual operation or income. If material information was withheld from the three debtors, expert **AUREN**, their creditors or the court, their assessment of viability, risks, value and alternatives may have been affected. Which document arrived, who received it and which decision used its contents must be verified.

From Meeting Point and the German files toward 36/2012, contracts, communications, inventories, payments and compliance records may reveal what was offered over Sun Park, who authorized the offer and what rights, claims, obligations or causes of action remained. Concealment or loss of those records would deprive affected parties and the insolvency court of material needed to reconstruct the estate, preserve evidence, pursue claims and assess loss. The same information deficit could harm creditors and other affected parties in Germany by distorting identification of each estate's recoverable assets, liabilities and contingencies. The estates of **FTI Touristik GmbH, Meeting Point International GmbH** and

Meeting Point Hotelmanagement Holding GmbH are not merged, and identical records or knowledge are not assumed.

Gil Marer alleges deliberate and persistent concealment after his notices. The documentary sequence requires concrete examination of that accusation: compliance file **2024-94**; the **9 July 2024** response concerning review and forwarding; Bierbach's personal communication of **10 July** identifying the Spanish enquiry; the meeting of **18 July**; document requests and responses; and the preservation notice addressed to **Lars Creutzmann on 3 January 2025**. The supplied documents establish those milestones within the limits stated in **annex 20**: the responses of **9 and 10 July** are preserved within a contemporaneously forwarded chain, while the January notice is recorded in the sent message and attachment. Deliberate concealment is Gil's accusation; individual attribution requires each recipient's handling, transmission and decision record. The verifiable questions are what each recipient retained and examined, what each concluded and transmitted to AUREN or the court, what each omitted despite a duty and capacity to supply it, and the effect of any omission. The dispute over ownership documents requested by **Rödl** must be resolved against the files sent and received, without removing either position from the account.

Dates of the individual notices. FTI's initial acknowledgment is dated **12 June 2024**; the formal attachment is dated **1 July 2024**; the notice addressed to **Lars Creutzmann** is dated **3 January 2025**. These are the dates documented in **annex 20**. No communication to those recipients in **2014** is asserted. The 2025 notice is evidence of what was communicated and the preservation request, not certification of every investigation or characterization it then announced. The later Munich response of **September 2026**, described in the Fourth section, must be read alongside it.

Effects of commercialization and physical control from 2018. Gil alleges an integrated mechanism: presenting the hotel to third parties as acquired and available; displacing control of an operating business; using that appearance and access to develop and commercialize the project; and consolidating an economic and negotiating position against owners and alternative proposals. He maintains that this sequence caused and prolonged harm extending beyond a disagreement about Club Sei's opening date. Causation is subject to verification through specific acts, documents and consequences; it is not inferred from chronology alone.

1. **Existing operation, rights-holders and the AWESWELL group.** Exclusion of maintenance personnel and intervention in reception, the dining room and access could immediately affect service, guest relations, preservation, reputation and the ability to generate and manage income. Gil alleges loss of commercial control, displacement of opportunities and others' use of the hotel's availability and economic identity. Each owner's and operator's rights, pre-existing bookings, cancellations, expenses, income and claims must be identified. LPB's loss, Matkator's loss and the shareholder's loss are distinct.

2. **LPB, its estate and creditors in insolvency 36/2012.** The establishment's functionality, preservation and access to customers and operators affected realizable value, competition among interested parties and prospects of continuity and payment. The allegation is that private control and presentation of the hotel as already available conditioned those options and the recovery actions requiring assessment. Commercialization of disputed rights was relevant to the insolvency even before proof of a final payment for a stay. Gil seeks reconstruction of what the insolvency administration and court knew and decided at each date, including the favorable and adverse decisions already supplied.

3. **Other owners and rights-holders outside LPB's estate.** An offer of an integrated complex could encompass or depend on facilities and rights belonging to Matkator or third parties. A representation that the whole hotel was available could affect their use, access, contractual position and value even where those assets were outside the insolvency. Registered properties, units, common areas and operating rights must be reconciled; neither a community of owners nor a creditor acquires authority to commercialize others' rights merely by holding that status.

4. **Customers, self-employed contractors, employees and suppliers.** In 2018 there were guests and services being supplied. The statement records specific incidents concerning access, maintenance and

evidence of payment arrangements; later public offers extended exposure to new consumers and channels. The people actually affected, interruptions, commitments, receipts, refunds, retained tools and costs must be identified. Real economic relationships mean the alleged effects cannot be treated as wholly future, without attributing every contract or loss to every entity.

5. **Continuity alternative, investors and financing.** Presenting the hotel to third parties under an assertion of acquisition could alter who appeared able to control the project, what information interested parties received and which alternative was viable. The alleged interference must be tested against the **ONA/Clubotel** structure and **June 2018** documents: outstanding conditions, required actions, guarantees, decisions and the actual reason for frustration or modification. Documented financing is not converted into unconditional disbursement; nor is possible harm excluded merely because financing was conditional.

6. **Meeting Point/FTI: commercial commitments and restructuring information.** The alleged activity commencing in 2018 and its later development could generate rights, costs, contracts, claims or contingencies relevant to the participating companies. It must be determined which belonged to each of the three Spanish debtors and how they were handled in **357/2024**, information supplied to **AUREN** and **93/2025**. Absence of a hotel-management contract does not itself exclude obligations arising from distribution, room supply, advance payments, promotion or third-party relationships.

7. **Affected parties and estates in Germany: reciprocal effect.** If German companies assumed commitments, costs or claims concerning the product, their administrators and creditors needed sufficient information about availability, ownership, litigation and liabilities. Conversely, German records may reveal contracts, settlements and actions relevant to recovery of value in Spain. The alleged omission would have impaired both reconstructions: in Spain, by obstructing identification of rights and income and their reflection in insolvency records; in Germany, by obstructing assessment of recoverable assets, obligations and claims. The entity, recipient, date and contents received must be identified. The whole FTI deficit is not attributed to this sequence.

Quantification and procedural effects. Gil seeks a matrix by affected party, right or asset, conduct, date, consequence and supporting evidence, avoiding double-counting a loss or equating gross income with net damage. The claimed harm also includes loss of information and evidence, decisions based on incomplete or inaccurately described availability, and delayed recovery. He asks that the information included, excluded or corrected in each setting and the action appropriate after each notice be checked. Attributed intent requires proof of each actor's knowledge and decision; the breadth of the alleged harm does not create collective liability.

Subject matter of the alleged concealment. Gil asks that six specific documentary groups be compared: **(1)** title, authority to dispose and the unit map; **(2)** works, management and distribution contracts and authorizations; **(3)** availability offered, bookings, payment requests and actual receipts, commissions and refunds; **(4)** proceedings and claims concerning the property and productive unit; **(5)** notices, materials and results of channel **2024-94** and the Spanish enquiry; and **(6)** information included, excluded or corrected in the debtors' documents, the **AUREN** report and later transmissions. The alleged intent must be tested through instructions to omit, inconsistent versions, proven knowledge, a specific duty and an actual capacity to produce or preserve material, without presuming it merely from the sequence of events.

Fourth ter. RIC Private Equity: its own conduct, documentary inconsistency and handling of the report

Attribution sought. Gil Marer maintains his allegation of a deliberate mechanism of asset displacement and material concealment, directed by the individually identified private actors and facilitated, as he alleges, by specific professional and institutional acts or omissions. In relation to RICPE, San Telmo/RSM and the Grant Thornton/Cuyás entities and professionals, he seeks examination of their own acts, interests, knowledge and decisions; proposing a person as a source or witness does not exclude that person from such examination. Any resulting criminal responsibility must be determined with the appropriate procedural status and safeguards, without collective attribution through a brand, family relationship or shared company involvement.

RIC Private Equity: its own acts requiring explanation and verification. Gil attributes an independent, material role to RIC PRIVATE EQUITY INVESTMENT PARTNERS, S.C.R., S.A. in presenting the Sun Park project to investors, in subsequent documentation concerning its viability and scope, and in financing its transformation into MYND Yaiza. His allegation does not rest solely on RICPE's relationship with other reported persons. It concerns its offering materials, statements made on its behalf, its certificate of 20 July 2021, financing information and handling of the subsequent report. Gil alleges that presenting the complex as available and owned, while LPB and third-party rights existed and decisions remained pending in insolvency proceedings 36/2012, may have helped consolidate the economic effects of the asset displacement he alleges. He requests verification of whether those who approved, issued, used or maintained those representations knew their limitations and omitted to communicate them to the relevant recipients.

The inconsistency requiring resolution is specific and time-dependent. The 2020 materials and presentation of 11 November 2020 must be compared with the certificate issued by Enrique Guerra Suárez on behalf of RICPE on 20 July 2021 and CAM's submission of 21 July 2021. The preserved certificate describes 262 registered properties: 54 attributed to CAM, 190 to the insolvent company-identified as LPB by the procedural context-and 18 to third parties. It records that no letter of intent had been signed, comprehensive due diligence had not begun and the project might not proceed. The certificate also states that the projects were published in 2020 with an express indication that they were under study, Sun Park was removed from the website in January 2021 and the June 2021 news item made the agreement conditional on the award becoming final. It distinguishes direct ownership of the establishment from ownership of all the properties. This explanation by RICPE is preserved in full. By contrast, the contemporary dossier of the 11 November 2020 webinar (annex 29, original pages 20 and 31-32) attributes to José Acosta statements about purchasing three properties with his own funds and without encumbrances; page 27 identifies Sun Park as one of the projects. The slide captures and the visible reference to €12 million "under study" are preserved. The dossier combines images and an authored transcript: it is not a certification of the audio. Comparison of the words, speaker and context with the located original recording is requested. A literal comparison of each version, its author and date, the ownership evidence considered and the correction actually sent to investors is requested. A subsequent acquisition or insolvency-court approval would not, by itself, establish the truth of an earlier assertion that an acquisition had already been completed; nor does the discrepancy alone establish intent on the part of every participant.

The report to the regulator and the documentary absence have a defined scope. The report sent to the CNMV on 13 January 2021, entry 2021002141, brought the challenge to that ownership presentation and investor information to its attention. The CNMV's reply of 22 January 2026 identifies supervisory work arising from that communication and states that the certificate of 20 July 2021 and CAM's submission the following day were not among the documents obtained in that work. The same reply acknowledges that the certificate was supplied to the CNMV as an attachment to the request of 23 December 2025: the absence concerns the supervisory body of records described, not a continuing failure by the CNMV to receive it. This identifies a specific gap requiring clarification: who was responsible for keeping and

transmitting those documents, who actually received them, what was asked and answered, and which corrections were circulated. Gil considers the inconsistency compatible with the intentional concealment he alleges and asks that it be investigated. He does not present the absence as defined by the CNMV as a regulatory finding that RICPE concealed documents or that every recipient knew their contents.

Substantive continuity with LPB and Meeting Point. Insolvency proceedings 36/2012, the marketing of Sun Park/Lava Verde/Club Sei by persons and entities connected with Meeting Point, and the subsequent RICPE financing concern rights and uses in the same complex, whose asset composition requires property-by-property verification. Separating dates or legal persons is therefore insufficient to dismiss the connection: the titles, contracts, assignments, investments, operating expectations, claims and contingencies carried from one stage to another must be identified. If a Meeting Point debtor acquired rights, incurred costs or generated liabilities relating to that project, information about actual availability and the disputes affecting it could have been material to 357/2024, AUREN's work and 93/2025. Conversely, documents held by Meeting Point/FTI may make it possible to reconstruct rights, income, consideration or claims omitted from LPB's liquidation. The German connection requires identification of the specific company and estate and the documents received by its administrator; a continuing contract or common responsibility between RICPE and Meeting Point is not presumed.

The San Telmo event is identified separately. The investor presentation of 11 November 2020 and the programme "Enrique Guerra, en #UnCaféenSanTelmo" of 30 November 2021 are distinct sources. Enrique Luis Guerra Suárez can explain his own statements and RICPE's documents; Eduardo Sánchez Iglesias can explain his own contributions, preparation and documentation for the 2021 event. The contribution at 08:08-08:12 is attributed to Eduardo Sánchez, not Guerra. Identification of engagements, clients, preparation and files actually shared is requested, without inferring the insolvency administrator's personal involvement from a professional relationship or retrospectively attributing to RSM an act predating the later professional integration.

The internal reply of August 2026 does not remove the documentary question. RICPE received the communication on 18 August 2026 and on 27 August notified its rejection and closure, without an internal investigation, because it considered the indications concerning its own conduct insufficient and much of the dispute to concern third parties. That contrary position is included and preserved. Precisely because this account identifies RICPE's materials, certificates and decisions individually, Gil asks which sources the decision-maker examined, how the difference between the investor presentation and certificate was assessed, and how conflicts were managed. The certified history records a request for the certificate of 20 July 2021 marked "Not shown to the reporting person." The outward communication does not identify the natural person who made the decision; the platform signature certifies the communication, not that person's identity. The appointment and delegation, users and permissions, actions, visibility rules, decision's author and approver, and circulation to bodies unaffected by conflict should be preserved. Possible deliberate restriction or concealment is alleged as a hypothesis; its authorship and explanation are not treated as established without those records.

Orion: personal and professional continuity, within a distinct scope. The relationships, interests and financing in section Third ter identify a later, separate business branch. The sufficiency of the background and contingencies communicated by their authors should be checked alongside the relationships expressly disclosed. Orion is not alleged to have received Sun Park assets or income without specific asset-level evidence.

Identified supporting material: annex 27a, a copy of the signed certificate of 20 July 2021, with highlighting already present in the recovered file; annex 27b, the CNMV reply of 22 January 2026, two pages with prior data minimisation; annex 27c, the certified communication and history of the RICPE channel of 27 August 2026, a redacted public copy. CAM's submission of 21 July 2021 is identified by reference; a complete certified court copy is requested.

Defined request. Preservation and production are sought, within the appropriate jurisdiction and procedure, of: (i) versions and recipients of RICPE's Sun Park materials from 2020-2023, recordings and corrections; (ii) the original certificate of 20 July 2021 and its supporting documents; (iii) ownership and due-diligence documents, authors and dates of the reports relied upon, and decisions to approve, remove and reintroduce the project; (iv) contracts and transactions through which a Meeting Point debtor acquired rights or incurred costs or liabilities concerning the same complex, and their treatment in the restructuring; (v) RICPE/HNT financing documents by instrument, purpose, disbursement and cost, distinguishing planned from executed financing; and (vi) records of the August 2026 report and communications with the CNMV, subject to lawful confidentiality. The aim is to establish who knew each fact, what they stated or omitted, and the specific effect on each proceeding or estate. If indications of an offence emerge, transmission to the competent authority is requested.

Fourth quater. San Telmo, RSM and Grant Thornton: professional conduct and handling decisions

San Telmo and RSM. Eduardo Sánchez Iglesias's participation in the San Telmo meeting with RICPE on 30 November 2021, and the insolvency administrator's professional and financial relationship with San Telmo alleged by Gil, justify reconstructing client, investment, conflict and custody files. Evidence of that relationship's dates, entity, contracts and consideration is requested; Eduardo's participation does not, by itself, establish the insolvency administrator's presence or individual knowledge. The later professional integration into RSM requires identification of the people, entities and files actually incorporated.

RSM also has its own acts of handling the communication. In file NNR4-1025C2F66, Francisco J. Remiro Hernández stated on 9 July 2026 that the Ethics and Professional Conduct Committee was continuing to analyse the documents and expected conclusions in September. On **23 September 2026**, he confirmed that the latest correspondence was being reviewed and that the analysis was being **reconsidered** in light of the August and September documents. He explained the delay by reference to a possible change in IT filtering and requested use of the channel for traceability. Gil alleges that the absence of complete, verifiable clarification has prolonged uncertainty about the evidence and his rights. He requests an index of materials received, decisions and decision-makers, independent checks, preservation measures, conclusions and completed transmissions. The reply of 23 September 2026 is included; it is not presented as total silence, a rejection of all review or an admission of intentional concealment.

Grant Thornton: prior knowledge and definition of the conflict. Juan Francisco Nasser, of the Forensic/Advisory team, stated on 27 November 2020 that there was no conflict or independence impediment to the proposed engagement, sent a signed NDA on 30 November 2020 and sent a revised engagement proposal concerning AWESWELL/Sun Park on 29 December 2020. These messages establish professional exchanges and contractual preparation; they do not, by themselves, establish acceptance and performance of the entire proposal. Preservation is requested of the list received for conflict checks, the signed agreement, materials actually received, access records and decisions, and identification of the entity that assumed each obligation.

On **4 December 2024**, the legal team of Grant Thornton International Ltd (GTIL) announced a review under its member-firm coordination obligations. On **21 December 2024**, it relayed Grant Thornton Spain's confirmation that the insolvency administrator was neither a partner nor an employee and did not work for the firm in any capacity. However, on **8 January 2025**, the Spanish channel, file **2024_04**, acknowledged **commercial services provided to an associated company in the Canary Islands**. It denied an employment relationship or an engagement within a GT entity, maintained that this prevented a finding of conflict, referred to the advanced judicial stage of the matters according to public information, and announced closure of the file.

The allegation concerns that definition and its consequences. Gil challenges the sufficiency of excluding a conflict by considering only employee or partner status without clarifying the actual mandate, associated entity, access, confidential information, supervision, work and billing. Comparison of the 2020 files with the knowledge and decision of 2024-2025 is requested. The two explanations may concern different legal entities and scopes; that must be documented. It is not presented as proved that anyone knowingly lied or passed information to opposing parties. GTIL, the service-providing firm, Grant Thornton Advisory, the associated Canary Islands entity and Cuyás must be distinguished, together with each professional decision-maker.

Supporting material and requested checks: annex 28 identifies extracts from the eight received messages, with explanatory translations where appropriate. In this public reading edition, private correspondence is described through attributed summaries; its native originals remain outside the public edition. Preservation of originals and attachments, conflict checks, contracts and access records, continuity or transfer of files, and the decision records of both channels is requested. The question is whether a specific act or omission, after demonstrated knowledge and where a duty and ability to act existed, contributed to loss of evidence, defective information or prolonged harm to LPB, Meeting Point or their counterparties. Receiving a report does not amount to accepting its merits; the allegation requires verification of what each recipient could and was required to do.

Fourth quinquies. CNMV and Portfolio: receipt, stated action and unresolved outcome

The correspondence identified in **annex 26** establishes different levels of knowledge and action. Portfolio recorded the report in December 2024; in March 2025 it stated that an internal assessment had been completed and requested official documentation of fraud. On 7 April 2025 it expressly broadened acceptable documentation to reports filed with authorities or courts and documents concerning suspected or actual fraud. Its subsequent replies prevent the initial request from being portrayed as an unchanging refusal to examine reports.

On 26 August 2026 it confirmed receipt of four files, incorporation of the San Telmo sources, linkage of Requests 81/82 to the historical file, preservation of the records, contextual review and internal transmission. On **11 September 2026**, it confirmed four documents sent on 7 September, incorporation into the file and forwarding to internal functions and the CNMV. The latter transmission is a statement by the operator; its receipt, index and scope are requested. It does not establish receipt by every board member or an outcome favourable to the reporting person.

On **6 May 2026, the CNMV stated** that the competent department had taken the reported facts into account in confidential supervisory work. This is more than an acknowledgment of receipt and does not announce a sanctioning or exonerating conclusion. The acknowledgment of 8 September 2026, Ref. 11823, concerns the communication of **20 August** and does not, by itself, establish receipt of a new September submission. The notice of 4 September 2026, outgoing reference 2026149422, extends a transparency deadline because of volume and complexity; it does not decide the supervisory merits. Reconstruction of the specific body of records considered and appropriate transmissions is requested, subject to lawful confidentiality.

Gil's criticism concerns the sufficiency, consistency and consequences of the handling of material facts demonstrably communicated. He seeks a verifiable response concerning the discrepancies, their authors and appropriate corrective or communication measures. He does not attribute a determination of culpability to acknowledgments, stated reviews or transparency deadlines.

Fifth. Five financing sources that must remain distinct

The possible economic relevance is presented as a **question of reconciling records**, not as an already established money trail:

- **RIC:** the tax reserve under article 27 of Law 19/1994; the taxpayer, financial year, allocation, qualifying investment and retention of the asset must be identified.
- **RICPE:** a CNMV-registered investment vehicle; registration, investors, commitments and accounts do not, by themselves, prove investment in Sun Park or use of public funds. In May 2026 the CNMV stated that it had considered reported facts in confidential supervisory work; it issued no public conclusion on this project.
- **Regional incentive GC/836/P06:** the BOE publication of 26 May 2023 records **Hotel New Trend, S.L.**, with approved investment of **€11,469,714** and an incentive of **€3,440,914.20**. The award does not establish disbursement, a particular registered property or ERDF co-financing.
- **European funds/ERDF:** these should be described as affected only if the programme, decision, managing authority, EU percentage, beneficiary and payments are identified. EU State-aid rules applicable to another loan do not automatically make that loan ERDF-funded.
- **SEPI/FASEE:** on **27 June 2022**, SEPI announced financial support of **€31 million** for the Meeting Point group (€20.7 million through a participating loan and €10.3 million through an ordinary loan). The application, list of hotels and applicant companies, undertakings, disbursements and use of funds are required to establish whether Sun Park, its rights or contingencies appeared in any form. CP99 channel notifications from November 2024 establish reporting activity, not a SEPI conclusion or financing of this property. Any German public financing likewise requires its own German records.

The [notes to FASEE's 2024 annual accounts, page 77](#), report a Meeting Point application for judicial approval of a restructuring plan filed on **27 March 2025** before Commercial Court No. 3 in Las Palmas. This establishes a published institutional reference to the restructuring, without demonstrating what information about Sun Park SEPI received or examined. Preservation and comparison of the application, any amendments and relevant monitoring documents are requested.

The **CNMC decision C/1549/25 of 23 April 2025** authorised Portobello, through Gestora Blue Sea Partner, to acquire sole control of Meeting Point Spain, S.L.U. and its subsidiaries. This is merger-control authorisation, not an asset inventory or proof of a completed transfer of Sun Park. Although Partners Group had announced its majority investment in BLUESEA, it replied on **9 October 2025** that it had reviewed the supplied material and made additional checks, and **expressly denied on 6 November 2025** any relationship between its investments and the Sun Park/MYND Yaiza property. Annex 32 preserves both replies, including its request that emails cease. They establish receipt and a stated review, whose actual content and scope are to be checked. This contrary position is expressly recorded among the referenced sources; the actual contractual scope is requested before knowledge or benefit is attributed to Partners Group.

Sixth. Judicial acts, CGPJ background and matters requiring identification

6.1. Acts in 357/2024. LPB's insolvency proceedings 36/2012, before the former Commercial Court No. 1, are separate proceedings. The following sources are identified in relation to 357/2024:

1. **Notice of 24 October 2024 signed by the court legal officer (LAJ), Miriam González Marrero:** it announces an order of the same date extending the effects of the decree of 18 September 2024. The notice is not the signed copy of that order and does not, by itself, identify the judge who issued it.
2. **Public Insolvency Register entry issued on 7 March 2025:** it identifies **Alberto López Villarrubia** as the judge in the decision of **24 October 2024**, published on **29 October 2024**, in 357/2024 before

Commercial Court No. 3. For the pre-reorganisation act, the historical identification is the Honourable Alberto López Villarrubia, Magistrate-Judge of the then Commercial Court No. 1 of Las Palmas de Gran Canaria; the register's attribution concerning Court No. 3 requires comparison with the original judicial act. The signed extension order and the instrument authorising substitution, reinforcement or another assignment have not been recovered here. Accordingly, neither a substitution role nor action without authority is asserted as proved.

3. Order 97/2025 of 18 February 2025, electronically signed by Guillermo Fernández García: it identifies the three debtors, describes the communication of 23 July 2024 and procedural record of 31 July 2024, and appoints **AUREN REESTRUCTURACIONES, S.L.P.**, following the request of 23 January 2025. The corresponding Public Insolvency Register entry was published on 19 February 2025. The relationship between the July record and September decree must be checked against both acts, without presuming an irregularity from the difference in dates.

4. Notice of 27 June 2025, electronically signed by LAJ Miriam González Marrero on 1 July 2025: it publishes the procedural order of **26 June 2025** accepting the application for judicial approval for processing in **93/2025** and reproduces the name of **Guillermo Fernández García** as the judge. It expressly identifies **357/2024 as the originating proceedings**, with the same NIG **3501647120240001256**; it records the approval proceedings' IUP **LM2025010787**, Section P. The identified applicant is **Meeting Point Spain, S.L.U.**, and the plan instrument is dated **20 May 2025**, protocol **2448**. This is acceptance and publication of the application, not the final order deciding its approval. The objection period reproduced belongs to that historical stage and is not presented as currently open.

The originating relationship between **357/2024 and 93/2025 is established by this notice**. A copy or certified court copy of the final decision and later acts determining the current status of both files is requested, together with identification of the relevant judicial assignment or substitution to the extent lawfully accessible. The acceptance notice does not, by itself, establish final approval or closure of either 357/2024 or 93/2025.

1. Later reference pending comparison with a primary source. In a public consultation on 23 September 2026, the [secondary Filings index](#) attributed to **93/2025**, Meeting Point Spain and Guillermo Fernández García an **order of 21 November 2025**, published on **26 November 2025**, concerning approval of the plan recorded in a notarial instrument on **14 March 2025**; it identifies the publication as **RPC-642533**. This reference is included solely to locate and request the original document. The same page contains another entry with a debtor and a judge unrelated to the June notice supplied; its chronology is therefore not adopted as certification of the proceedings. Nor is the March instrument identified, without comparison, with the instrument of **20 May 2025, protocol 2448**, described in the June judicial notice. Verification is requested of whether there was an amendment, correction, successive instruments or an indexing error. **Finality, absence of challenges and current closure are not asserted on the basis of that index.**

6.1 bis. Established corporate succession and current documentary custody. The [BORME of 11 September 2026](#), BORME-A-2026-176-35, page 43363, entry **411362**, publishes the absorption of **Meeting Point Spain, S.L. and Meeting Point Investment, S.L. by Meeting Point Hotelmanagement (Canaries), S.L.**, registered on **4 September 2026**. Entries **411363 and 411364** publish the dissolution by merger and extinction of the two absorbed companies. The universal-succession regime in **article 34.2 of Royal Decree-Law 5/2023** makes identifying the absorbing company relevant when examining continuity of assets and custody. Any transmission ordered is requested to be made to the appropriate legal person and procedural representative after checking that succession, with identification of where the predecessors' contracts, accounting records, commercial data and communications are kept. The merger does not, by itself, establish that Sun Park formed part of the transferred assets, a specific obligation toward LPB or Matkator, unlawful conduct or termination of court proceedings.

Notice **BORME-C-2026-3171**, published on **3 June 2026**, identifies the common merger plan of 30 March 2026, resolutions of 20 May 2026 and balance sheets dated 31 December 2025. Identification of their custody and, through the appropriate procedure, preservation and comparison of those documents and the corresponding audits are requested insofar as they may establish rights or contingencies concerning Sun Park/Lava Verde/Club Sei. The names and capacities of the signatories belong to the historical notice; they do not, by themselves, establish current representation or knowledge of these communications.

The information request therefore covers **both proceedings**, any approval order, its publication and finality if recorded, challenges or related files, the status of AUREN's appointment and any decision reflecting procedural succession. This informative communication **is not framed as a challenge to the plan and does not seek to reopen the periods in articles 653-658 TRLC**. The reference to a later order reinforces the need to specify current status and documentary destination; it does not remove the distinct purpose of the access request or of communicating facts to the appropriate recipient.

6.2. Prior notice concerning both proceedings. Gil's communication to the CGPJ of **27 October 2025** already identified 36/2012 and 357/2024, the attribution to Judge López Villarrubia in both contexts, the private conduct concerning Sun Park and a possible omission of risks and contingencies material to Meeting Point. It is identified as historical background, not independent proof of its allegations. The CGPJ reply of **30 October 2025**, file **UAC 023936/2025A01**, signed by **María Paz Ramírez Blanco**, confirms receipt of the submissions entered on 27 October concerning **both courts and both proceeding numbers**, and their addition to the UAC file. It explains that jurisdictional matters must be raised within the respective proceedings, through the appropriate procedures and by persons with standing. **It does not order this court to admit this submission, declare judicial misconduct or establish actual transmission to either court.**

6.3. Later decisions and their actual scope. In **DI 169/2026**, concerning Alberto López Villarrubia and the court handling LPB, the disciplinary complaints officer's decision of **14 May 2026** closed the complaint because of its jurisdictional character and the absence of the required disciplinary basis. It ordered notification to the complainant and the judge concerned, and communication to the High Court of Justice (TSJ). The decision of **10 July 2026**, sent on 22 July 2026, maintained that closure and stated that matters communicated outside the proceedings should have been raised within them for the presiding judge to decide. Both decisions are preserved **in full** in the underlying bundle: their reasoning explains the purpose of now seeking a record within the judicial proceedings, without turning them into an admissibility decision in 357/2024. An order to notify does not, by itself, establish delivery or personal knowledge; the communication record would allow verification.

The CGPJ communication of **16 July 2026** confirmed **Administrative Appeal 286/2026**, entered on 18 June 2026, against the closure of DI 169/2026. Its communication of **21 August 2026** confirmed incorporation of five attachments submitted in July, two later annexes and an audiovisual link, and stated that the appeal was then being processed. It is not asserted that this status persists at the date of this document or that the appeal has been upheld; no later decision has been located here.

In the separate matter **DI 781/2025**, the decision of **26 February 2026**, notified on 15 April 2026, closed the file because disciplinary acts and conduct had not been specified sufficiently. It also ordered transmission to the **Inspection Service** and communication to the TSJ. It is included to reflect the complete background. An ordered referral does not prove its execution, the opening of an inspection, its outcome or a finding against any judge in these proceedings.

6.3 bis. Replies from the Government Secretariat and Provincial Coordinating Secretariat, relevant to the present route. The decision of the **Government Secretariat of the Canary Islands TSJ, EG 38/2026**, sent on **20 August 2026**, closed the supervisory request. Its fifth ground places requests for documents and records within the proceedings under article 234 LOPJ, after demonstrating the requisite interest and using procedural channels. Its seventh ground states that the Secretariat then

had no record of receiving the DI 169/2026 decision and that the disciplinary complaints officer's communication was for information. This does not establish non-receipt by every TSJ unit or concealment, nor does it open an inspection in itself. The accompanying communication used "28/2026", but the PDF identifies **38/2026**, the reference used here.

The decision of the **Provincial Coordinating Secretariat, general register 20/2026, signed on 21 September 2026 and notified on 22 September 2026**, again places custody and certification with the offices responsible for each proceeding. It refuses the requested actions but **orders transmission of the submission, documents and decision to the Government Secretariat**, for information and possible incorporation into EG 38/2026 or the identified appeal. It expressly excludes any implication that the transmission reopens the matter, admits the requests or establishes indications of irregularity. Both decisions are preserved in full in the underlying bundle. The present request identifies specific documents and entries before their custodian; verification that the administrative transmissions were executed is directed to the competent sender and recipient.

6.4. Allegations now brought to attention. Gil submits that decisions, information or possible omissions concerning administration and operation of LPB's assets could be relevant to the rights, contingencies and financial exposure of one or more of the three Meeting Point debtors. His concern encompasses **Judge López Villarrubia's conduct in LPB and the register's attribution in 357/2024, and Judge Guillermo Fernández García's signed acts in the latter proceedings**. Identification is requested of the acts carried out by each, the information actually received, when it was received and under which entry. Signing an order appointing an expert does not, by itself, establish knowledge of every external report; nor does a copy of correspondence sent to third parties.

Participation in related matters does not automatically constitute a ground under article 219 LOPJ. Without bringing a recusal application as a party here, this information is made available to the court for any appropriate examination of the **duty to withdraw under article 217 LOPJ**, should a specific statutory ground arise. The administrative office is not asked to decide impartiality informally. Disagreement with judicial decisions requires the appropriate procedural remedies.

6.5. A connected account and individual attribution. The common chronology preserves the relationship between the owners' association, LPB, operation and marketing, Meeting Point/FTI, compliance reports, financing and transfer. Each actor is identified by **date, capacity, act, source and outstanding document**. LPB's liquidator, the PwC professionals, owners' association officers, AUREN, Bierbach, Scharl, Abegg and the acquirers have different functions. The connected documentary account allows relationships to be checked without attributing collective purpose or responsibility or seeking automatic consolidation of separate proceedings.

6.6. Entry references and criminal-proceeding background whose identities must be preserved. Contemporary correspondence identifies **Ref22 and Ref24 with the submissions of 18 June 2026**, and **Ref21 with the submission of 25 June 2026**. According to that correspondence and the cover sheets, a **thirteen-page supplementary submission dependent on Ref24** was also submitted on 25 June, separately from the new Ref21 complaint. The traceability submission to the CGPJ, registered on 26 June, belongs to another route and is not a second judicial supplement to Ref24. Filing of the supplement to Ref21 dated 26 June has not been established; its working text remains private. For the supplement dated 9 July, contemporary correspondence records physical delivery; its electronic incorporation and annex index remain to be checked. These daily references do not replace the NIG or establish allocation or receipt by another court in themselves.

Subsequent development and identification limits. In **DP 1901/2026**, NIG **3501643220260016977**, the order of **14 September 2026** by Court Seat No. 6, Judge Luis Francisco Galván Mesa, ordered **definitive dismissal and closure (sobreseimiento libre)**. It considered the allegations to lack an objectively supportable basis and held that the reported facts did not disclose a criminal offence; it recorded the Public Prosecutor's application for closure of **29 July 2026**. Its account

identifies a complaint alleging judicial misconduct amounting to prevaricación and examines the September and November 2025 decisions concerning removal of the insolvency administrator. This adverse ruling is expressly preserved. **Annex 30** of the private bundle contains a transcription of the three pages of the received paper copy. For verbatim public reading, the reference is the **controlled transcription corrected after comparison on 19 September 2026**, which preserves the visible wording and records its corrections; earlier PDFs are not presented as the corrected verbatim version. This is a derived textual reproduction, not the native court PDF or certification of finality. Its subject matter must be reconciled with the contemporary correspondence linking Ref21 to the complaint against private actors and with the judicial route of Ref24. Without the allocation history and complete records, the discrepancy does not justify a statement as to which materials concerning private actors were actually decided. The order's statement about the absence of an appeal must be checked against the relevant appeal files and the appellants' identities.

After that order, Gil's tracking record shows personal requests to Court Seat No. 6 for access and traceability registered on **20 September 2026**, and a documentary inquiry on **23 September 2026** concerning the initial submission and treatment of Ref21. These are identified as registered access and identification requests, **not as established appeals against the order**. Their incorporation into the proceedings and any response are not verified here, and their receipts are not included in the bundle. Neither finality nor a decision on an appeal against that order is asserted. As regards **DP 1956/2026**, the tracking material records **provisional dismissal (sobreseimiento provisional)** on **21 July 2026**, without presenting that date as the verified signature date of the order. The reviewed records do not establish that an application for reconsideration or appeal was filed; the signed order and certification of the file's status remain outstanding. The nature and effects of the two dismissals remain separate. **This document does not ask the commercial court to reverse, reopen or set aside either decision.**

The 2023 criminal complaint is background to the allegations and sources, accompanied by the decisions concerning it. Central Investigating Court No. 3 refused to admit it on 25 January 2024 because it did not then consider criminal relevance established and lacked jurisdiction. In deciding the appeal on 8 March 2024, Order 119/2024, the Chamber focused its reasoning on the jurisdictional requirements of the Audiencia Nacional and expressly accepted that the account could present some appearance of criminal conduct, while confirming the appealed decision in full. The Supreme Court refused to admit the cassation appeal on 13 June 2024, appeal 1867/2024, because the appealability prerequisite of a prior formal judicial accusation was absent. Its reference to a "definitive dismissal" is its characterisation of the earlier decision, wording not found as such in the checked original operative part; it is not presented as a new evidential finding disproving the facts. Each decision's content, effects and distinct subject matter are preserved, without automatically transferring its procedural identity to 357/2024 or 93/2025. Annex 19 contains copies of the orders of 25 January 2024 and 8 March 2024. The Supreme Court decision and new June complaints are identified as referenced background not included in this documentary bundle; comparison is requested where appropriate, without turning that reference into proof of their incorporation into these proceedings.

Seventh. Recording, traceability and possible communication to recipients

Gil requests preservation of the **registration identifier, timestamp, file list, annex integrity, destination court and outcome of allocation or incorporation** generated by any electronic filing, with the receipt provided for in article 71 of Royal Decree-Law 6/2023. He asks that requests requiring a decision be referred to the court as appropriate under **articles 455 LOPJ and 178.1 LEC**, insofar as legally applicable: the latter provides for referral on the same or following working day for requests requiring a judicial ruling. The possible request for an AUREN report under article 679 TRLC and consideration of communication to the Public Prosecutor under article 40.1 LEC are specifically identified here. Making those requests does not dispense with admissibility requirements. If the submission requires correction, a procedural representative or another route, he asks that the affected request, applicable requirement and opportunity to correct any legally remediable defect be identified, without losing the reference to the filing. Each decision or transmission is requested to identify the numbered requests it resolves and any that remain pending. A reasoned procedural decision, including refusal of admission or return, must be distinguished from a technical incident or a submission that generated no registration entry.

The prohibition of retaliation in **article 36.2 of Law 2/2023** is invoked as a reservation regarding **possible acts or omissions that, within that law's requirements, cause harm in a work-related context exclusively because of reporting**. It is not asserted in advance that the court office, its LAJ or anyone else will retaliate, or that an unfavourable procedural decision amounts to retaliation. Preservation of acts and receipts is requested so that legally available routes for information access, data protection, correction and review can be used where appropriate.

As regards communication to interested persons, transmission is requested to **Meeting Point Hotelmanagement (Canaries), S.L., as the absorbing company identified in section 6.1 bis, through the appropriate procedural representation after checking succession, and to AUREN**, if its function and the proceeding's status permit, of incorporated information concerning them; and to other parties appearing in the proceedings where legally appropriate. The historical conduct of the three debtors remains individually identified. The recipient, date and documents transmitted, or the reason for refusal, should be recorded. The 2025 order historically identifies court representative Pedro Antonio Ledo Crespo and lawyer José Minero Macías; the office must check current representation. An express decision is also requested on communication to **FTI Touristik GmbH and its insolvency administration**, the German insolvency court and recipients in the acquisition chain, in accordance with section Eighth F. Where a separate channel is required, the appropriate certified court copy or copy is requested, with an actual receipt and decision from this court, while preserving confidentiality and each entity's identity. This document does not assume that the court will notify every private actor or request indiscriminate circulation of personal data.

Eighth. Institutional communications: recipient, purpose and prerequisite for each transmission

A. CGPJ and the judicial governing body. In addition to procedural requests, an express judicial-administration component concerns functioning and documentary traceability: checking the discrepancy between the communication to the TSJ ordered in DI 169/2026 and the absence of a receipt record described in EG 38/2026, together with execution of the transmission ordered on 21 September 2026. Processing is requested under **articles 5.1, 5.3, 7 and 8 of CGPJ Regulation 1/1998**, with referral to the competent governing body exercising the functions of the former senior judge's office or presidency and a copy to the CGPJ within the forty-eight-hour period provided in article 5.3; acknowledgment, identification of the responsible body and a record of the decision's dispatch under articles 7 and 8 are requested. UAC 023936/2025A01, DI 781/2025, DI 169/2026 and Administrative Appeal 286/2026 are cited to facilitate correct association. This component is requested to be processed **through an identified copy**, preserving the procedural requests for the appropriate decision in 357/2024. An administrative complaint is not used as an appeal against the merits of judicial decisions, and disciplinary responsibility is not presumed.

B. Canary Islands TSJ. Communication is requested to its **Presidency**, for consideration of its inspection powers under articles 172 and 174.2 LOPJ, and to its **Government Secretariat** regarding EG 38/2026 and the transmission of 21 September 2026. These recipients have different functions. Article 174.2 requires a judicial assessment of the appropriateness of measures exceeding the court's competence; it is not presented as an automatic obligation to open an inspection. The competent sender is asked to identify the outgoing entry, documents sent and acknowledgment, and the recipient to check the incoming entry and assigned reference. One court's decision cannot, by itself, certify all another body's registers.

C. Public Prosecutor. A ruling is requested on whether the specific documented facts-availability of the productive unit, interventions affecting its assets and possible presentation of rights or contingencies by the debtors-disclose an apparent offence prosecutable ex officio. **If that prerequisite is met**, communication by the procedural order provided for in **article 40.1 LEC** is requested, with copies of the relevant documents and references to known files to avoid duplication. The legally appropriate referral is sought, without assigning a criminal investigation to this commercial court or requesting an automatic stay of proceedings.

D. SEPI/FASEE. Consideration is requested of an official notice to the managing body identifying the CP99 communications of November 2024 and the €31 million operation announced in 2022, limited to contracts, rights or contingencies that may affect its scope. If the Fund or its procedural representative is a party appearing in 357/2024, the transmission legally due to it as a party is requested. **Neither that appearance nor a rule requiring every third-party submission to be sent to SEPI has been established here.** The requested notice must be decided within the court's competence and confidentiality obligations. It does not replace a direct supplement to the CP99 communication or presume that Sun Park formed part of the financed application.

E. Tax relevance and Union funds. If the proceedings disclose specific tax-relevant information concerning RIC, ownership, investment or income, communication to the competent tax authority under **article 94.3 LGT**, subject to statutory restrictions, is requested. If conduct within the competence of the **European Public Prosecutor's Office** is documented, communication without undue delay under **article 24.1 of Regulation (EU) 2017/1939** is requested, having regard to articles 22, 23 and 25. Mere reference to RIC, SEPI, German financing or a regional incentive does not establish an effect on the Union budget or satisfy that criminal-law prerequisite. The beneficiary, file, cost or asset, declaration and possible harm must be identified. For the CNMV, granting authorities and German authorities, legally appropriate transmission is requested with the relevant competence and documents individually identified; no universal duty of circulation is asserted.

F. Contemporaneous availability in Germany and within the acquisition chain. Gil urges that the individually identified material information be made available, without undue delay and through the legally appropriate channel, to the **insolvency administration of FTI Touristik GmbH, Axel W. Bierbach, proceedings 1500 IN 1758/24 before the Amtsgericht München**, and to the German insolvency court. Identification of other actually affected German Meeting Point estates and their administrators is also requested. The aim is for the same relevant information to be available in Spain and Germany while assets, rights, obligations, contingencies, file handovers and recovery claims are assessed, with a common index, version and date and identification of actual receipt and incorporation.

Duties of diligent administration, information, preservation and protection of the estate and creditors are invoked to the extent applicable to each office and estate. **Sections 58, 60, 66, 151, 153 and 156 of the Insolvenzordnung** govern, respectively, judicial supervision, diligence and potential liability, accounting, inventory, statement of assets and liabilities, and reporting, according to each provision's subject and timing. Verification is requested of what those responsible received, how they assessed it and how it was reflected in their documents and decisions. Invoking these provisions does not confer recognised creditor status on Gil or make the Spanish court a superior authority over the German insolvency administration. The procedures in **articles 56-58 of Regulation (EU) 2015/848** are sought only if their prerequisites are verified in relation to proceedings concerning companies in the same group, subject to the required reservations and limits.

A decision is also requested on transmitting relevant information to **BLUESEA, including GESTORA BLUE SEA PARTNER, S.A.; PORTOBELLO CAPITAL, S.L., identified in the CNMC decision of 23 April 2025, after checking current representation; and Partners Group, through the appropriate management or investment entity and compliance function**, following identification of the specific legal persons, mandates and contracts. The purpose is to enable those who acquired, control or hold companies, contracts, files or contingencies connected to Meeting Point to know and assess the communication within their actual remit. Partners Group's denial concerning Sun Park/MYND is preserved and comparison with the actual contractual and documentary scope is requested; acquisition of the property or universal transfer of liability is not presumed. The reference **566 Js 155187/24** would be communicated with its official provenance and the later reply of **15 September 2026**: the criminal file is a channel distinct from the insolvency proceedings, and its current status requires certification.

Institutional notice concerning preservation and an express decision. An express request is made that **the alleged concealment should not continue and that every decision concerning circulation of this material information be documented**. Any restriction or refusal to transmit is requested to identify the competent authority or responsible person, date, affected documents and specific basis, including any appropriate confidential treatment, and to preserve the documents. Once receipt, knowledge, a duty to act and the ability to do so are established, a further deliberate and harmful omission may be examined through the competent procedure, together with its effects and justification. Gil seeks an express response enabling the handling of the information to be checked and preventing its omission from continuing through unidentified decisions. Statutory confidentiality should be addressed through selection of documents, redaction or restricted access, with a record of exclusions and the reasons for them.

All these requests share a chronology and documentary index. Each transmission should record its scope and destination; making it does not, in itself, decide the admissibility of the remaining requests or establish misconduct.

Ninth. Persons proposed for documentary verification and possible testimony before the competent authority

Preservation and identification of their documents are requested, together with testimony on the individual matters listed if appropriate in the competent procedure. The three people initially named for testimony-Enrique Luis Guerra Suárez, Carlos Saavedra Rodríguez del Palacio and Eduardo Sánchez Iglesias-are highlighted alongside others with relevant knowledge. This commercial-court communication does not, by itself, open a criminal investigation or summon witnesses. If indications arise against anyone, that person must participate with the appropriate procedural status and safeguards.

1. **Enrique Luis Guerra Suárez - RICPE.** Origin of the project presented to investors; the people who supplied the information; identification of the asset, title and availability; due-diligence documents, contracts and warnings received. The presentation of 11 November 2020 must be separated from the San Telmo meeting of 30 November 2021. Production of the file enabling verification of which contingencies from insolvency proceedings 36/2012 reached RICPE and what was done with them is requested. His certificate of 20 July 2021, the RICPE channel file and his functions and interests in Orion/AGM should also be included. The proposal for testimony encompasses his own acts and does not prejudice the appropriate procedural status. A prior direct professional relationship with the insolvency administrator requires specific evidence.

2. **Carlos Saavedra Rodríguez del Palacio and Miguel Hernández Lorenzo - the PwC legal team in 2016, each in relation to his own conduct.** Preparation, documents supplied and explanations at the meeting of **10 June 2016**; warnings concerning debt, allocation of operating expenses, owners' association charges, voting and the use of figures in the insolvency; Francisco Mario Matos Matas's receipt and response, commitments to review, and subsequent acts. Attribution of each contribution requires comparison of the audio and transcript. Miguel's debt warning and Carlos's warning about charges must not be attributed interchangeably. The Landwell/PwC legal firm and PwC Auditores are separate legal persons; a later audit mandate does not establish information sharing or conflict.

3. **Eduardo Sánchez Iglesias - San Telmo in the 2021 episode; subsequent professional integration into RSM.** Production, invitation and sources for the meeting of 30 November 2021; the scope of his own statement about introducing clients at **08:08-08:12**, engagements, conflict checks and custody of the file. He, not Enrique Guerra, makes that statement. San Telmo's integration into RSM's professional structure in 2024 does not establish universal succession or retrospective responsibility for RSM. Identifying the "abandoned complex" as Sun Park requires a literal check of the video and its context. His own acts, the clients actually introduced and the information he knew, supplied or kept should also be checked; his role should not be limited to that of a witness unconnected to the events.

4. **Joan Cruz Nuez.** Actual presentation of the hotel to third parties as acquired; visits, measurements and plans before 7 June 2018; authority for access, those extending the invitations, companions, represented entity and destination of what was obtained; Sun Park/Lava Verde/Club Sei development and file custody through the Meeting Point/BLUESEA continuity. The judicial testimony of 25 June 2018 identifies only a person called "JOAN", whose position was unknown to the witness. Contemporary documents from May 2018 and the corporate sequence support checking identity but do not replace definitive authentication or prove coordination with the insolvency administrator or judge.

5. **Miguel Ángel Barreiro Cano.** Firsthand knowledge of the February/March 2018 visits, measurements and presentation of the hotel to third parties; occupancy, maintenance, guests, keys, locks and the events of 7 June. Confirmation and expansion of the judicial testimony of 25 June 2018 in DP 1132/2018, and authentication of recordings or photographs he personally made or witnessed. The account of the February conversation and the Burovoz/Logalty call of 22 March 2018 must remain distinct. His observations do not, by themselves, establish ownership, authority or internal corporate knowledge.

6. **Jonathan Simó Morales.** Authorship and basis of the accounting work, books and supporting records used, differences between the owners' association, hotel operation and LPB, versions supplied, recipients and response; documents brought to the June 2016 meeting and the 2019 expert report. Originals must be recovered and their specific incorporation into each proceeding determined. The existence of accounting analysis does not automatically settle the legal sufficiency of all books or supporting records.

7. **David Espejo Navarro.** Economic reports on owners' association debt, CEXP, valuation and liquidation alternatives; methodology, verified sources and client-supplied data; signed versions included in the opposition to the insolvency-classification claim. His knowledge of third-party offers must be separated from offers he examined directly: the letters and financing conditions take precedence over secondhand references within his report.

8. **Daniel Irigoyen Fujiwara, in his 2018 role as lawyer/coordinator of a proposed solution.** Any participation would be limited to facts he personally witnessed and could give evidence about without breaching professional secrecy: meetings whose occurrence and participants are established, third-party documents actually delivered, and the material outcome of the ONA-Clubotel alternative. Contemporary operator and financing documents must be checked against their own original sources, preserving their conditions and guarantees. The contents of his confidential communication of 13 June are not published or used as public evidence of instructions, advice or words attributed to the judge. The alternative is not presented as an unconditional, assured financing closing, and his professional conduct is not confused with the exercise of judicial power.

9. **Juan José Vera Díaz.** Actual function and dates at Meeting Point, circulation of financial information between Spain and Germany, project budgets/contracts and subsequent custody. Identity and corporate offices are documented; specific personal participation in Sun Park requires his own files and communications. The powers at Horwath HTL/MGM/Global Mergers Acquisitions Canarias and the office at Pama e Hijos-two Orion shareholder companies-should also be specified in accordance with annexes 23-25, identifying mandates, communications and conflicts at each date.

10. **Dr Mark Sellmann and Sinja Baum - FTI compliance channel, each in relation to their own involvement.** Record 2024-94, material received from June 2024, those who examined it, referrals and outcomes; in particular the communication of 9 July concerning review and forwarding to insolvency administrators. The incoming record, allocation, attachments, actions and closure should be requested. Receipt and replies establish neither a conclusion on the merits nor concerted concealment.

11. **Axel W. Bierbach and Oliver Scharl - administrators of separate German estates.** Information actually received, instructions, scope investigated, documents obtained, incorporation into inventories/contingencies/claims and communication to Spanish bodies. On 10 July 2024 Bierbach identified his engagement of Georg Abegg; this does not establish equivalent knowledge or action by Scharl. Each estate and appointment must be identified separately.

12. **Georg Abegg and lawyer Patricia Ayala - the Rödl route for Spanish investigation/documentation.** Engagement, meetings, information requests, documents actually received, checks and delivery of results to the instructing party, subject to legal professional-secrecy limits. The contrast between requests for documents in July/November 2024 and the sender's response maintaining that they had already been delivered is expressly preserved; that disagreement does not, by itself, prove deliberate non-performance. Rödl is distinct from FINKENHOF, the German procedural representation.

13. **Lars Creutzmann.** Specific functions in each entity, receipt and handling of the notice of 3 January 2025, preservation and transfer of the Spanish entities' information and documents. Appointment to several companies does not establish personal knowledge of every fact. The notice's contents must not be attributed to Karl Markgraf or Sabine Dorn without evidence of transmission or their own conduct.

14. **Atilano Sastre and the custodian of Essenthia's file.** The communications of 4 and 5 February 2020 (annex 22) identify Sun Park as the establishment known to the supplier as Lava Verde and confirm prior manufacture/assembly of a pilot room. Sastre clarifies that the factory performed and held the commercial work, while he accompanied and provided support; the interior design was specified by the client. Identification of the contracting party, instructions, unit, date, delivery notes, invoice, images and personnel involved is requested. His referral to the legal department is preserved as an explanation concerning custody, not an admission of concealment.

15. **José Enrique Delia Conde, El Corte Inglés Empresas.** Check the March 2020 visit, refurbishment proposals and CAM/Meeting Point interlocutors attributed to him in a contemporary account of a conversation on 12 June 2020. The accepted invitation confirms the later meeting; the substantive statements in the account are not a signed statement by Delia. His own account, diary, photographs, NDA, estimates and communications are requested. Neither a signed works contract nor an operator's identity inferred by third parties is presented as proved.

16. **Custodians and distribution personnel at Loveholidays, Youtravel and sonnenklar.TV.** Identify the people and entities that listed Club Sei Lanzarote, the supplier, allotments, dates, session reference retained privately and property codes; request bookings, payments received, deposits, commissions, settlements and refunds. Their knowledge concerns contracting and handling data within their own channel, without assuming that they knew all the insolvency facts.

Additional verification and custody:

- **AUREN and those responsible for the Spanish restructuring:** identify report signatories, documents supplied and treatment of contingencies, contracts, assets and litigation; compare with documents received from the German entities. Specific people should be proposed when the report and engagement are recovered, without inventing names.
- **Meeting Point/FTI/BLUESEA custodians and distribution platforms:** contracts, plans, inventories, commercial listings and removals, bookings, payments received and transferred files. A brochure or advertisement does not establish actual opening or revenue: preserve the COVID postponement of 27 October 2020.
- **Juan Carlos Prieto Puente and Cristo Ayose Suárez Pimentel:** supplementary verification of what was seen, said and delivered at the 2016 meeting and its follow-up; do not seek confidential advice or infer adverse conduct from their status as lawyers. First recover objective sources and define the engagement, client, subject and period.
- **RSM, Francisco J. Remiro Hernández and San Telmo custodians:** documented handling of file NNR4-1025C2F66, replies of 9 July and 23 September 2026, materials, decisions and actual file transfers. Examine sufficiency and their own responsibilities without presumed universal succession.
- **Juan Francisco Nasser, Fernando Lacasa, Naomi Sharma and the person responsible for Grant Thornton's internal reporting system:** 2020 files, service-providing entity, NDA, conflict checks, Canary Islands relationship and decisions in file 2024_04. Their knowledge and conduct are bounded by functions and dates; any testimony must preserve applicable legal confidentiality.
- **Víctor Martí Gilabert, AGM/Orion personnel and Abbaco Markets custodians:** contracts, questionnaires and information responsibilities described in section Third ter. **Jaime García-Cruz Carbó and Portfolio custodians:** scope of the stated review and transmissions, with an index and receipts.
- **FINKENHOF, FTI Consulting and current professionals:** priority should be given to document requests and precise identification of the engagement. Do not automatically include their personnel as witnesses to the original events. FTI Consulting is not FTI Touristik.

GROUNDS OF THE REQUEST

Articles **585-593** of the TRLC govern the debtor's communication; **article 586.1.4.º** requires an explanation of circumstances that may affect negotiations. This provision specifies the proposed relevance without giving a third party a general right to investigate. Articles **607-611** govern effects and time limits: their expiry does not certify closure of the file.

Articles **234 and 235** of the LOPJ permit information and non-confidential access for those demonstrating a legitimate, direct interest, subject to data protection; **article 455** assigns the LAJ responsibility for organising referral of matters to the judge under procedural law. **Article 11.3** supports legally available correction of defects without supplying standing that does not exist. **Article 217** governs withdrawal on the court's own initiative; **articles 218, 219 and 223** govern standing, grounds and procedure for recusal. **Article 71** of Royal Decree-Law 6/2023 governs electronic receipts and complete recording of documents. **Law 2/2023**, articles **2, 3, 35 and 36**, is invoked within its scope, without treating a reasoned procedural refusal of admission as retaliation. The **Canary Islands Judicial Portal** offers filing of procedural submissions and access using a digital certificate. It must be checked that the service enables Gil to identify and direct a submission to the appropriate proceeding; public availability does not establish his personal access to these files or dispense with procedural-representation requirements. A decision on the independent information request is sought under articles 234-235 LOPJ, to the extent warranted by the established legitimate and direct interest.

The specific grounds invoked for communications are **Regulation 1/1998**, articles **5, 7 and 8**, **articles 171-176 LOPJ**, **articles 40.1 and 178.1 LEC**, **article 679 TRLC**, **article 94.3 LGT** and, only if its prerequisite is met, **article 24.1 of Regulation (EU) 2017/1939**. The LAJ is responsible for custody of the office's active records under **article 458.1 LOPJ**. Decisions and their notification are governed by **articles 206 and 208 LEC**; any review depends on the type of decision and required standing. The **FASEE regime**, **Order PCM/679/2020**, defines management and monitoring of support and does not make every report submitted to this court subject to mandatory transmission to SEPI.

PROPOSED REQUESTS TO THE COURT, THROUGH ITS OFFICE

The following reproduce the relief sought in the prepared submission. Their appearance in this public reading edition does not establish filing, admission, service or an order granting them.

1. **Receipt and incorporation:** accept this submission with the files actually attached, issue a verifiable receipt and **order its complete incorporation into the originating file 357/2024 and its documentary joining or association with 93/2025**, identifying the destination of the original and any copy or reference according to each file's status, together with its index and the background explaining the factual connection, for recording and assessment within the court's jurisdiction. Referral of matters requiring judicial decision and a record of the decision made are requested. Supplying material does not imply recognised party status.

2. **Information and access, as an independent request:** decide the legitimate and direct interest claimed and provide, within the access granted, the current status, responsible court and latest decision in **357/2024 and 93/2025**; verify and provide, if recorded, the approval order of **21 November 2025**, its notice, publication date, finality and challenges or related files, together with the status of AUREN's mandate and any procedural succession; provide a copy or certified court copy of the order of 24 October 2024, decree of 18 September 2024, procedural record of 31 July 2024 and the act terminating, transferring or linking the matter to another file. Identify, to the extent accessible, the assignment or substitution corresponding to the act attributed to Judge López Villarrubia. This request retains its purpose even if incorporation or transmission of other contents is refused.

3. Judicial decision on an expert report: in light of the connection described, and if the mandate continues and an appropriate procedure exists, consider and order under **article 679 TRLC** a defined AUREN report identifying: (i) which, if any, of the three debtors had contracts, rights, costs, income or contingencies concerning Sun Park/Lava Verde/Club Sei; (ii) what documents concerning ownership, availability and litigation it received and when; (iii) what reports it actually received and how, if at all, these were reflected in its work; (iv) what distribution, booking, deposit, settlement and refund records it examined; and (v) what information remains outstanding and its possible effect within the engagement. An index of attachments and recipients for each transmission is also requested, together with reconciliation by entity and item of the information received against the versions of the inventory, valuation, contingencies and plan documents supplied to the expert and court, identifying inclusion, exclusion or correction, the responsible person, date and basis. A judicial ruling is requested without assigning a criminal investigation to the expert or treating an omission as proved. References to insolvency proceedings 36/2012 should be retained without consolidating them or deciding LPB's claims here.

4. Transmission and recording of the result: transmit incorporated material, to the extent permitted by the procedure and applicable confidentiality, to **Meeting Point Hotelmanagement (Canaries), S.L.**, taking account of its registered absorption of Meeting Point Spain and Meeting Point Investment and checking the appropriate procedural representation; to AUREN if it retains a relevant function; and to other appearing parties as appropriate. Record what was sent, to whom, when and with what result, or why transmission was inappropriate.

5. Allegations concerning judicial involvement: record the background in section Sixth, with its sources and limits, and process it as appropriate under article 217 LOPJ if a statutory ground exists. Identification of the act and decision route is requested; this submission does not bring a recusal application or seek a predetermined disciplinary conclusion.

6. Referrals subject to a statutory prerequisite: decide communication to the Public Prosecutor under article 40.1 LEC and the tax, European and SEPI transmissions defined in section Eighth. For every favourable decision, identify the recipient, documents, date and transmission result; if inappropriate, communicate the basis concerning that request. Referral to the judge under article 178.1 LEC is requested for decisions within the judge's remit.

7. Judicial-administration component and copy to the CGPJ: process the functioning and traceability component defined in section Eighth A under articles 5.3, 7 and 8 of Regulation 1/1998, transmitting a copy to the competent governing body and the CGPJ with the stated references; also consider communication to the TSJ Presidency and Government Secretariat within their respective functions. Dispatch of the administrative copy should be identified separately from the decision on incorporation, access and reporting in 357/2024.

8. In the alternative, an individualised decision and correction: if the file's status, standing, confidentiality, relevance or representation requirements prevent any request, identify the particular affected request and basis and, where legally remediable, the requirement and opportunity to correct it. Preserve the filing record and decide separately requests for which a route exists, without treating the entire submission as an undifferentiated request for a general investigation. Notification of the decision and applicable review routes is requested.

9. Only in the alternative, if the office establishes that either proceeding has ended: identify the corresponding decision and termination date, and expressly decide incorporation into the archive for the record or the appropriate destination in the related **357/2024-93/2025** file. This request does not make processing the earlier requests conditional on prior external verification by Gil. If the requested incorporation is unavailable, state the basis and available route, preserve the incoming reference and decide information and access requests that retain a purpose. Reactivation of pre-insolvency effects, a challenge to approval by this route or a presumed ex officio referral is not sought.

10. **Preservation and personal sources:** consider preservation and defined production of the six groups in section Fourth bis, including the 2018 commercial and control acts, the distribution and payment chain described in section Third, their effects on each affected party, and the individually identified groups in sections Third bis/ter and Fourth ter/quater/quinquies: RICPE certificates and offering materials, Orion/AGM information duties and transactions, professional contracts and files, conflict checks and channel files. Identify custodians, entities, versions, demonstrated knowledge, decisions and consequences for each estate; request production only through the route and to the extent relevant to these facts. Treat the people in section Ninth as proposed for documentary verification and possible testimony in the competent procedure; include this list and its purpose in any communication ordered to the Public Prosecutor, without treating them as summoned by this document.

11. **Documented communication to Germany and the acquisition chain:** decide the legally appropriate transmission of this submission and its relevant documents to the insolvency administration of **FTI Touristik GmbH, 1500 IN 1758/24**, the German insolvency court and other affected German estates; and to **BLUESEA/Gestora Blue Sea Partner, Portobello and Partners Group**, through the entities and representatives whose involvement is established and for the purpose in section Eighth F. Identify the document, version, recipient, date and receipt; seek confirmation of handling or incorporation where appropriate. Preserve criminal reference **566 Js 155187/24**, with its uncertified status and the reply of 15 September 2026. An express, reasoned decision on any exclusion or confidentiality restriction, and preservation of the materials, are requested. If any transmission exceeds the court's competence, identify the competent route or recipient and provide the appropriate copy or certified court copy for submission by a person with standing.

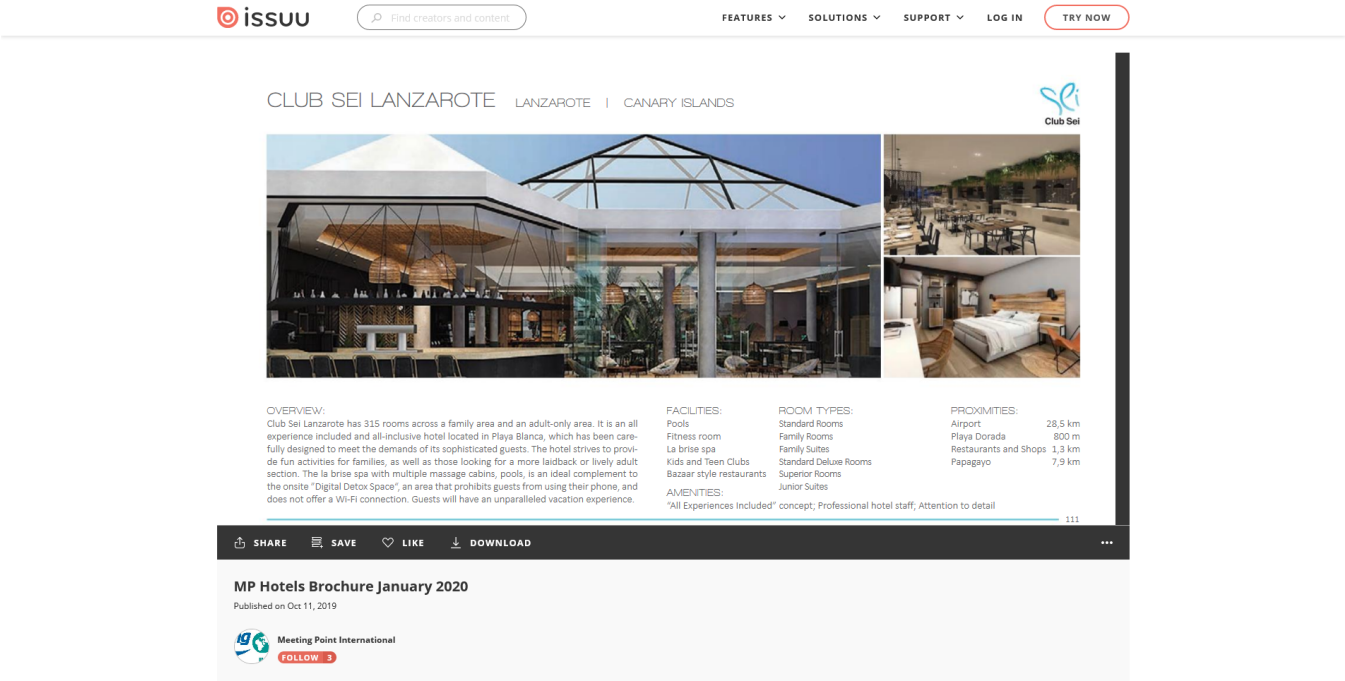
ADDITIONAL REQUEST: Minimise personal data visible to third parties and apply permitted confidential treatment to telephone numbers, addresses, witness information and annexes requiring it; the court office will determine what is appropriate. A confidentiality request does not amount to an automatic declaration that proceedings are secret or prevent mandatory transmissions. Strategy correspondence with lawyers and the private investigation report are not included in the bundle.

Capacity stated in the prepared submission: Gil Marer acts **solely in his own name as a reporting person**. His relationship with AWESWELL and its subsidiaries is identified, without formally appearing on their behalf. This public reading edition reproduces no signature or electronic-execution metadata.

Public visual selection

Four identified public reproductions. This selection does not replace the private annexes. The original images retain their language and attributions; their labels are not presented as judicially established facts.

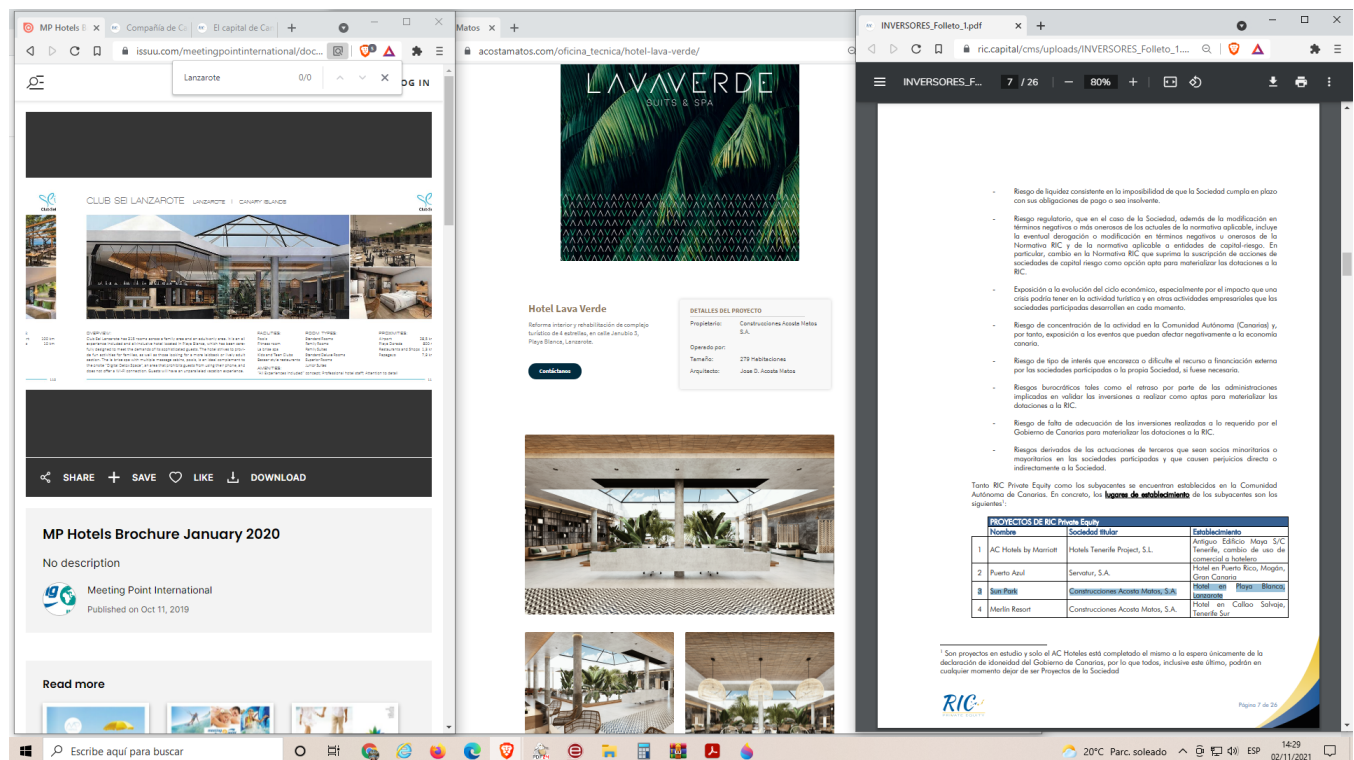
Image 1



Club Sei Lanzarote in the Meeting Point Hotels brochure, January 2020 edition, published on 11 October 2019. Page 111 presents 315 rooms. This is a commercial presentation; it does not establish opening, title or an operating contract. Document 2 Annex 5b p.47; original brochure PDF p.111

Open the public reproduction in context

Image 2



Comparison archived on 2 November 2021: the Club Sei brochure, Acosta Matos's Hotel Lava Verde presentation and an RIC document naming Sun Park. The RIC footnote retains the qualification "under study." This commercial correspondence supports requesting contracts and unit maps; it does not prove whole-site ownership, authority or legal identity. Existing bilingual Club Sei dossier, evidence gallery; archived comparison dated 2 November 2021

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José Acosta Director General de Construcciones Acosta Matos y Consejero de RIC PRIVATE EQUITY

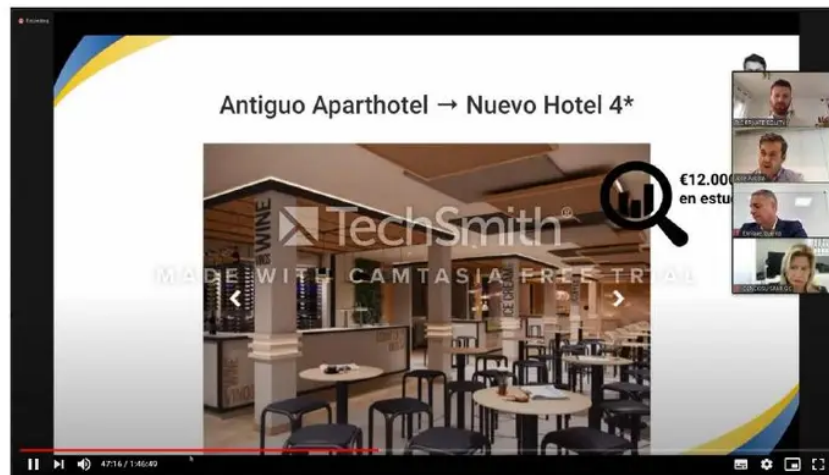
*"Y el último **proyecto que tenemos en cartera** es el antiguo **Aparthotel Sun Park** en Playa Blanca, un complejo de 220 apartamentos turísticos **que vamos a transformar también** en un Hotel de 4 estrellas con una inversión de 12 millones de euros"...*

27

Contemporaneous dossier of the RIC webinar of 11 November 2020, page 27: its text attributes to "José Acosta" the presentation of Sun Park as a 220-apartment, €12 million project. This is the compilation's capture and attributed transcription; the original audio remains to be checked. The amount is a proposed investment, not a verified disbursement. Document 1 Annex 29 p.91; original contemporaneous webinar dossier p.27; webinar 11 November 2020

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Image 4



José Acosta Director General de Construcciones Acosta Matos y Consejero de RIC PRIVATE EQUITY

*"Nosotros **hemos comprado los tres complejos con fondos propios**, por lo tanto **los tres inmuebles están libres de cargas**, nosotros ofrecemos nuestro producto comprado en propiedad de la compañía sin cargas hipotecarias de ningún tipo".*

32

Page 32 of the same webinar dossier: an attributed statement about purchase with own funds and absence of charges. It is preserved as a statement to test against title, charges and contracts; it does not certify those matters. Labels and transcription belong to the compilation, not a judicial transcription of the audio. Document 1 Annex 29 p.96; original contemporaneous webinar dossier p.32; webinar 11 November 2020

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